



The Hong Kong Polytechnic University
Department of Land Surveying and Geo-Informatics

LSGI3402 Land Boundary Dispute Resolution

Group ■ Case Analytic Report

**IN THE DISTRICT COURT OF THE
HONG KONG SPECIAL ADMINISTRATIVE REGION
MISCELLANEOUS PROCEEDINGS NO 2487 OF 2017**

BETWEEN

WONG PO KWONG (黃寶光)

Plaintiff

And

TSANG KING FUNG (曾敬峰)

1st Defendant

YAU YIN (游賢)

2nd Defendant

LAW YIM (羅艷)

3rd Defendant

YAU YUET NGOR ANITA (游月娥)

4th Defendant

Group Members:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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Introduction

In this case study, our group has applied what we have learnt from this course in the following real land boundary dispute case - DCMP 2487/2017 ([2022] HKDC 1337), in which the link can be referred to as below:

(<http://www.hklii.hk/en/cases/hkdc/2022/1337?hl=DCMP%202487%2F2017>). The dates of hearing are 16-19 August and 29 August 2019, and the date of judgement is on 21 November 2022. For this situation, this case is being heard in the District Court of the Hong Kong Special Administrative Region. It involves a property dispute between a plaintiff and several defendants over a long and narrow piece of land and its associated rights and interests. This case shows issues of law, including the doctrine of adverse possession, trespass, encroachment, and conflict of boundaries, and the role of land surveyors as expert witnesses in these cases.

Considering the level of analysis of land surveyor proof and the weight of expert witness testimony, the case is very instructive. The plaintiff sought to regain control over a contested piece of land, whereas the defendants claimed the land from a counter position based on the adverse possession doctrine, stating that they had the exclusive possession of the land for a period exceeding twenty years. During the course of the proceedings, it became apparent that the court relied heavily on the expert report prepared by the plaintiff's land surveyor, Mr. Eric Tang. His report contained lists of aerial photographs, survey sheets, and dimension plans. This overreliance illustrates the dependency the legal system has on a land surveyor as a provider of technical evidence for land boundary disputes and issues that are legally complex.

We chose this case for study because it is a practical illustration of the relationship between legal and technical discipline. Although both sides had contradictory witnesses, the court chose to rely on the objective and less disputable information contained in the land surveyor's report. This is consistent with our expectations of land surveyors contributing to the resolution of disputes as neutral expert witnesses in the court.

This report will resolve this case using the FIRAC model (Facts, Issues, Rules, Application, and Conclusion) and analyze it in more detail. With this model, we will focus on the legal issues, determine what the main problems are, and how the law has been judicially applied to the facts in the case. Moreover, we will focus on the duties of a legal land surveyor as an expert in boundary disputes, the processes involved in drafting expert reports, and how the surveyors' objectivity and integrity is critical in the performance of their professional duties.

In here, we would like to thank Mr. Eric Tang and his company, Eric Tang & Associates Ltd, for their valuable expert reports, aerial photographs, old survey sheets and questionnaires which helped us better understand the case and enabled us to prepare this report in detail.

The disputed lot that is discussed in the case is Lot 1837 S.B RP, D.D.106, and this lot is owned by the plaintiff. It is located in Yuen Long, New Territories. The latitude and longitude of the location of the lot is approximately 22.42237° and 114.07607° respectively.

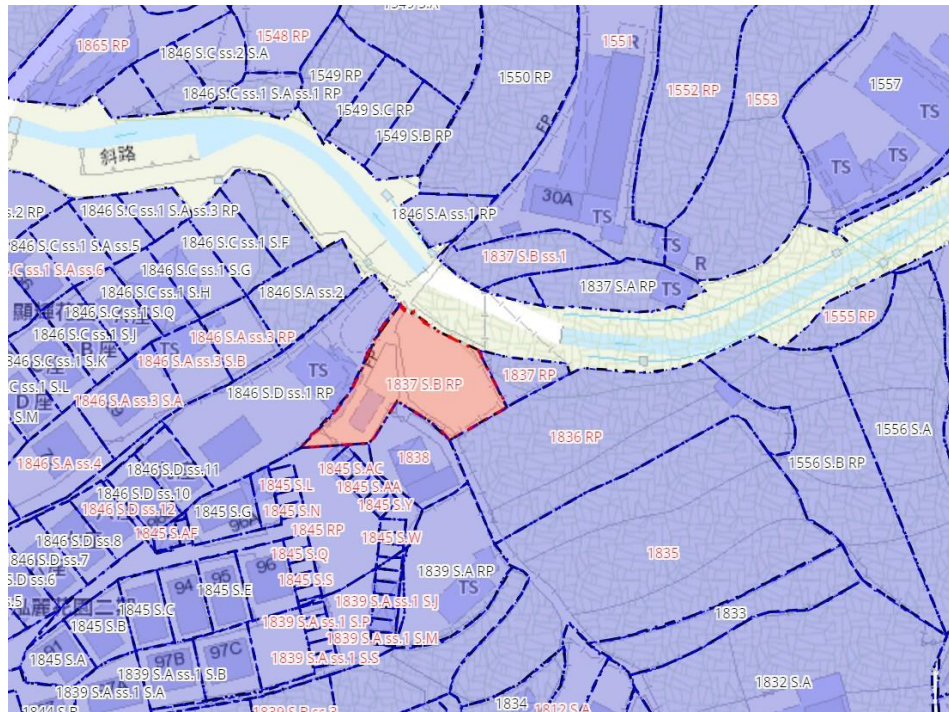


Figure 1: Lot 1837 S.B RP in D.D.106 highlighted in HKMS 2.0

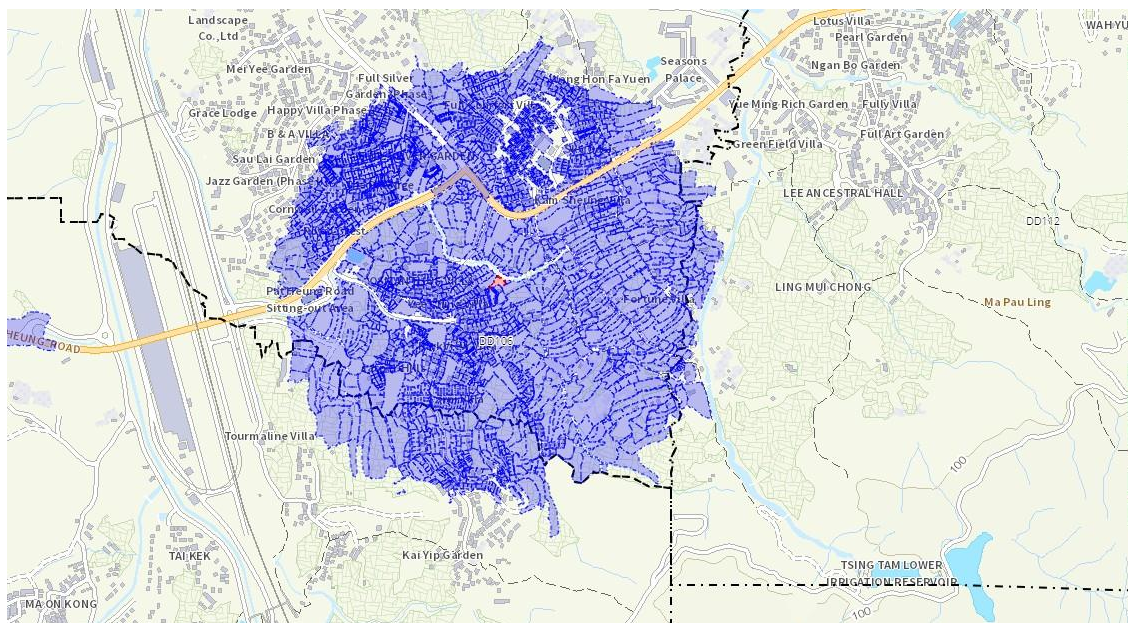


Figure 2: Surrounding environment of Lot 1837 S.B RP indicated in HKMS 2.0

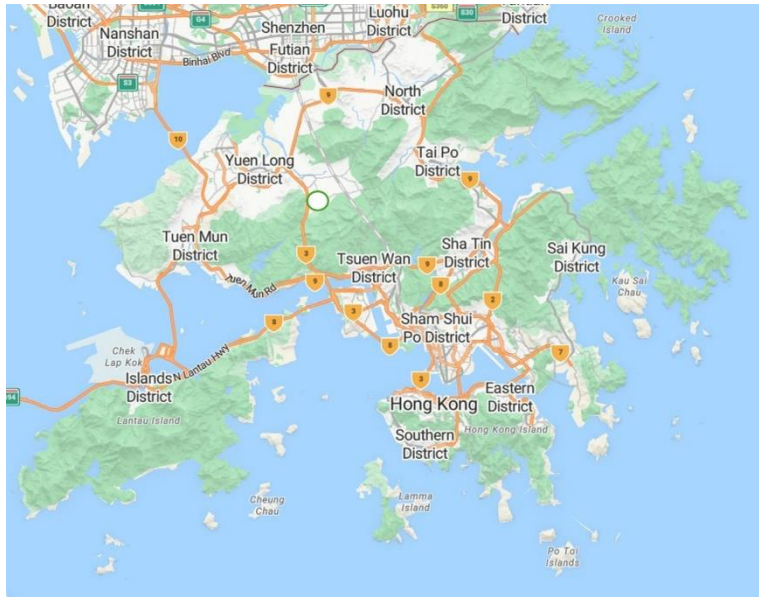


Figure 3: Location of Lot 1837 S.B RP

Below is a table listing the following parties that are involved in this case:

Parties involved	Name
Plaintiff	Wong Po Kwong
1 st defendant	Tsang King Fung
2 nd defendant	Yau Yin
3 rd defendant	Law Yim
4 th defendant	Yau Yuet Ngor Anita
Counsel (Responsible for the plaintiff)	Mr. George Chu
Counsel (Responsible for the 1 st defendant)	Ms. Lee Wing Ki
Counsel (Responsible for the 2 nd to 4 th defendant)	Mr. Joshua Choy
Factual witness (Plaintiff's side)	Mr. Wong (The plaintiff's uncle)
Factual witness (Plaintiff's side)	Mr. Yeung (Representative of the village)
Factual witness (Defendant's side)	Mr. Yau (The 4 th defendant's elder brother)
Expert Witness	Mr. Eric Tang (The plaintiff's expert)

Table 1: Parties and name involved in the case DCMP 2487/2017

Case Background and Facts

Case Background

This case reference DCMP 2487/2017 is about the legal issue regarding a rectangular piece of land known as the "Disputed Land" situated within the owned Lot 1837BRP by Wong Po Kwong (the plaintiff) and adjoining Lot 1838 owned by the 4 defendants in Yuen Long, New Territories.

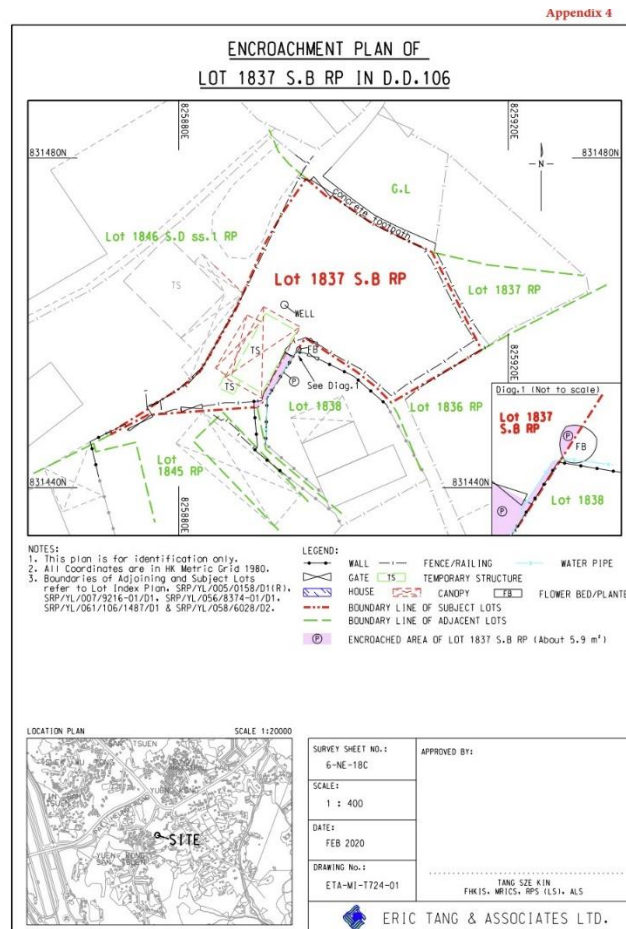


Figure 4: The “Disputed Land” highlighted in pink color

In here, the entire battles between the plaintiff and the defendant over the Disputed Land will be illustrated briefly. As the registered owner of Lot 1837BRP since 11 January 2014, the plaintiff claimed that the defendant's fencing of the Disputed Land was considered as trespassing in about 2010 and resulted in an invasion. The 2nd to 4th defendants' counterclaim is that they acquired the Disputed Land through adverse possession, arguing that they had completely enclosed the fences and had ownership of them since 1983. Since there were no obstacles or fences built in June 2009, the plaintiff disputed this claim. The 1st defendant, who has become the registered owner

of Lot 1838 since 14 December 2015, states that he is clear of the claimed property violations and claimed that he neither built nor approved the fence.

To establish their claims over the Disputed Land, both parties have carefully presented information related to experts in surveys and different stories of their possession, the timeline about the construction of the fences and the relationship diagram between different parties involved.

Fact

Below is a timeline showing each case and its attendant events in chronological order.

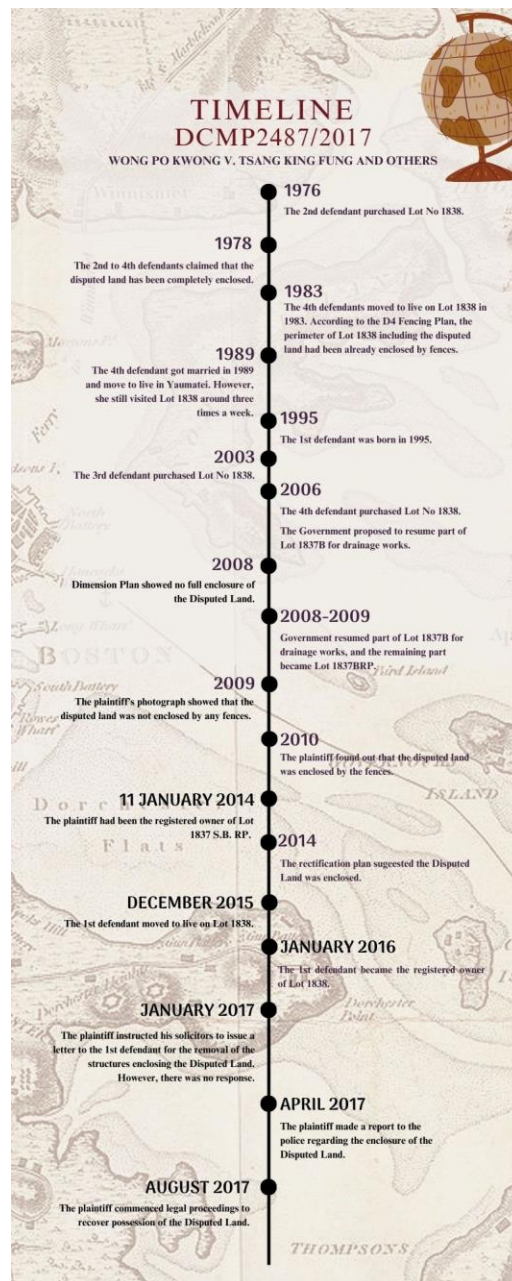




Figure 5: Timeline of the case

Evidence was given from both the plaintiff and the defendants' sides. Here is the summary of the evidence given by each person.

Plaintiff's side:

Mr Wong (Plaintiff's uncle)

Mr Wong claimed that Farmhouse 25A was built in 1972, leaving an alleyway, which is Disputed Land, for storage and drainage purposes. In 1999, most of parts of Lot 1837B were farmed out and the remaining parts were used for leisure purposes. He would still regularly clear the drains on the Disputed Land for other usage until Lot 1837B had been farmed out. In 2010, he found out that the Disputed Land was enclosed by fencing, and therefore he tried to contact the 2nd defendant about the situation but left this issue to the plaintiff. During 2010-2017, more information would be given by the plaintiff since Mr Wong was unable to give a clear explanation of that time.

The Plaintiff (Wong Po Kwong)

The plaintiff was born in 1995. Since the 1980s, he had visited Lot 1873B regularly for recreation and family gathering purposes. In 2006, he attended various meetings with different departments, including the Lands Department, Drainage Services Department, and the Home Affairs Department to express that he objected to the plan on undergoing the drainage improvement projects. Despite the objection, on 28 March 2008, the government ignored his disagreement and started the drainage improvement projects by resuming parts of Lot 1837B and the parts not resumed became Lot 1837BRP. In addition, he did not believe that the orange flag placed by the contractors was to indicate the lot boundary.

Due to the concerns that the Works proposed by the government might have influence on Lot 1837BRP, in 2009, he photographed the unenclosed Disputed Land with the evidence of the aerial photographs. In 2010, he had discovered that the Disputed Land was enclosed and demanded the defendants to remove the fencing. However, there was no response among them.

On 9 April 2017, he reported this case to the police to identify the person who was in charge of constructing the fencing and enclosing the Disputed Land. On 17 August 2018, it was confirmed that the 1st defendant was the one the plaintiff was looking for.

Mr Yeung (Representative of the village)

Mr Yeung was the representative of the village since 2003. He was responsible for monitoring and coordinating with the Drainage Services Department about the drainage Works that different departments were carrying out. He observed that the Disputed Land was not enclosed before 2009, which held the same evidence as the plaintiff. And in 2010, he found that the Works area was not involved in the Disputed Land.

Since Mr Yeung was the deputy of the village for a long time, he was keen on monitoring the development of the village and kept an eye on the Disputed Land.

Defendants' side:

For the defendants, most of the evidence can be found and analyzed by the 1st defendant and 4th defendant. However, due to health issues, the 2nd defendant and 3rd defendant were not able to give too much evidence on the case.

1st defendant (The son of 4th defendant)

The 1st defendant was born in 1995. On 14 December 2015, he became the registered owner of Lot 1838, and he moved to Lot 1838 in January 2016. He stated that he was not involved in any action on the fencing on the Disputed Land since he was only 15 years old after the plaintiff had found that the Disputed Land had been enclosed in 2010. In April 2017, he was not aware that his name was told by the 4th defendant during the police visit.

2nd defendant (Husband)

The 2nd defendant purchased lot 1838 in 1976, and conducted construction works on it. He agreed with other defendants that the Disputed Land had been enclosed since 1978, although no strong evidence was proven.

3rd defendant (Wife)

The 3rd defendant stated that he had same statement as other statements, claiming that the Disputed Land had been enclosed since 1978, although no strong evidence was proven.

4th defendant (The mother of 1st defendant)

The 4th defendant claimed that Lot 1838 including the Disputed Land had been enclosed by the wire fences since 1983.

She accepted that the Disputed Land was not enclosed in at least May to June 2009 by looking through the photographs taken by the plaintiff. However, to explain the discrepancy and support her arguments, she changed the statement that she had not seen the photographs taken by the plaintiff. She further changed the remodeling of the fencing took place in 2009 instead of 2010 since remodeling work normally took around 3.5 months. She also said that the fencing of the entrance of the Disputed Land was demolished.

She accepted that no documentary evidence was available to show the changes to the erection of the original fencing and no photographs to show the enclosure of the entrance of the Disputed Land. This indicates that the statement on what she expressed relied on testimony, which means her speech only, with no supporting evidence from the aerial photographs or old survey sheets since aerial photographs are the facts and real evidence that can be proved on whether the fence had been enclosed or not.

Also, she disagreed the fact that the orange flag outside the Disputed Land shown in the plaintiff's photographs were put by the 2nd defendant to tell others for carrying out the Works. She accepted that the dimension plan dated 22 January 2008 by Mr. Eric Tang did not include the Disputed Land and there was no enclosure of the entrance of Disputed Land marked on it.

Mr Yau (The 4th defendant's elder brother)

Mr Yau did not live on Lot 1838, but he claimed that the Disputed Land had been enclosed since 1983. No strong evidence was found since he was not familiar with this case.

Third party's side:

Expert Witness (Mr. Eric Tang)

Mr. Eric Tang is the plaintiff's expert, as well as a professional land surveyor.

He examined that aerial photos and land survey sheets could not conclusively show presence or absence of fencing of the Disputed Land. The reason is that the aerial photos were poor quality and covered by tree spread since 1980.

He also examined the dimension plan and the rectification plan, which was prepared by another land surveyor on 31 July 2014. Based on these plans, Mr. Tang thought the Disputed Land was enclosed somewhat between 2008-2014 since in 2008, the Dimension Plan marked no enclosure while in 2014, the Rectification Plan marked enclosure.

According to the evidence provided above, Mr Eric Tang concluded that the Disputed Land was not enclosed before 2008, and this contradicted the defendants' claim of possession since 1978. His objectivity was evident in his admission of the limitations of the evidence and his refusal to draw definitive conclusions where none were justified.

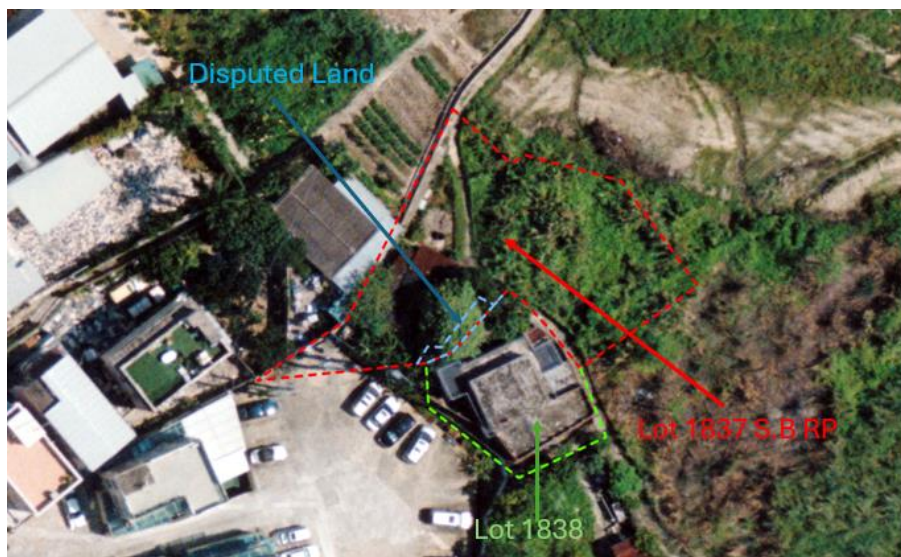


Figure 6: Aerial photograph in 2008 (CS16857) that the Disputed Land covered by trees.

This table outlines the interpersonal relationships between the various characters in these cases.

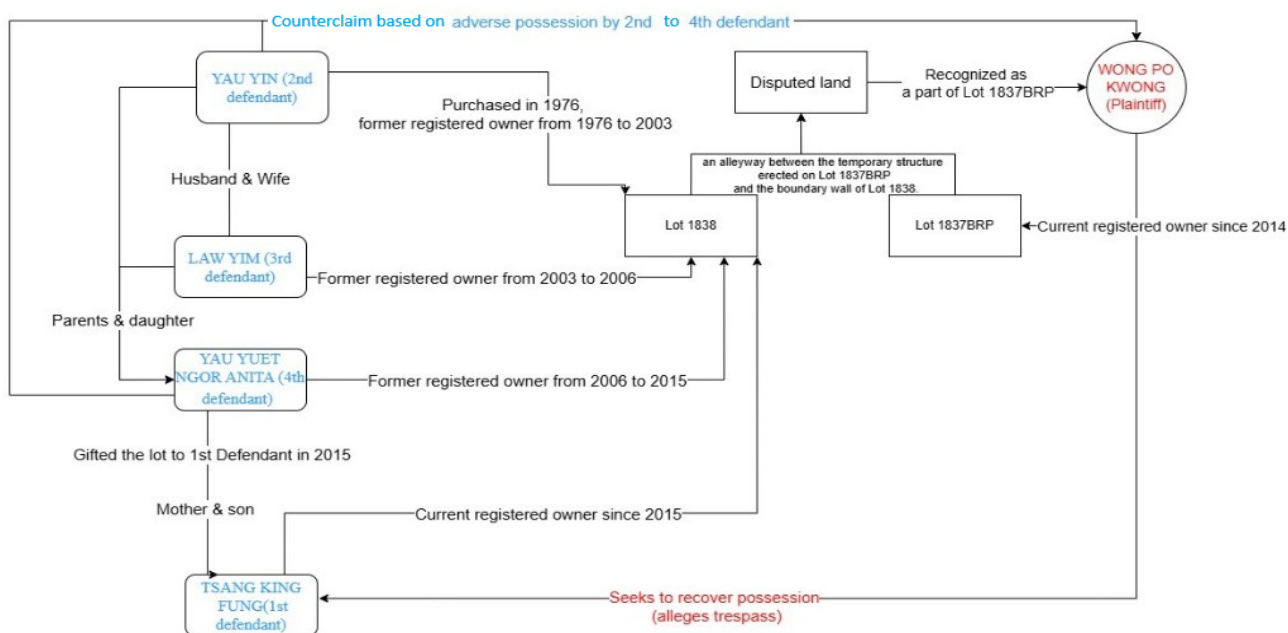


Figure 7: Relationship diagram

Issues

The Court has developed two issues which fall for determination in this case:

- **Adverse Possession:**
 1. Whether the 2nd to the 4th defendants have proved exclusive possession and intention of possession by fencing for at least 20 years before 2017 (i.e., since August 1997) to establish adverse possession?
- **Claim against 1st Defendant:**
 2. Whether the 1st defendant Tsang King Fung trespass the Disputed Land?

Rules and Reasoning

The court has reasoned through the evidence from both sides as follows. After listing the issues, rules and reasoning can be identified. The case also considered and quoted some rules that need to be considered, to identify whether the adverse possession can be established or not. There are three essential elements to construe the adverse possession, which are exceeding limitation period, intention of possession (*animus possidendi*) and exclusive possession. The precedent cases and ordinance that construe the principle of adverse possession are:

1. **Wong Tak Yue v Kung Kwok Wai & anor (No 2) (1997-1998) 1 HKCFAR 55, 68E**

A person claiming adverse possession must be shown to have both possession and the requisite intention to possess.

2. **Wong Tak Yue, p 68**

The question of intention to possess is one of fact which is dependent on an assessment of all the circumstances in a particular case. This involves the intention, in one's own name and on one's own behalf, to exclude the world at large, including the owner with the paper title if he is not himself the possessor, so far as it is reasonably practical and so far as the process of the law will allow.

3. **Incorporated Owners of San Po Kong Mansion v Shine Empire Ltd (2007) 10 HKCFAR 588 , 592J–593I**

The question as to what acts constitute a sufficient degree of exclusive physical control must depend on the circumstances. Acts of possession done on parts of land to which a possessory title is sought may be evidence of possession of the whole. Whether or not acts of possession done on parts of an area establish title to the whole area must, however, be a matter of degree.

4. **On Yip Property Development Co Ltd v Kwok Tai Kuen Alan (HCMP 3192/2013, [2014] HKEC 650, 15 April 2014), [8]**

The burden is on the squatter to prove uninterrupted possession for the requisite period and there is no presumption, whether legal or evidential, of continued possession in favour of a squatter even if adverse possession is established to have commenced.

5. Wong Kar Sue & Ors v Sun Hung Kai Properties Ltd & Anor [2006] 2 HKC 600

A person may still acquire title by adverse possession even though he believes himself to be the true owner.

6. Topwell Corp Ltd v Kwan Kam Kee [2014] 5 HKLRD 1

A mistaken belief of ownership does not prevent a person from acquiring title through adverse possession.

7. Hui Cheung Fai & Anor v Daiwa Development Ltd & Ors (HCA 1734 of 2009, 8 April 2014)

Importance is attached to the inherent likelihood or unlikelihood of an event having happened, or the apparent logic of the events. It is further important to assess the consistency of the evidence of a witness with undisputed or indisputable evidence, and its internal consistency, namely by comparing the oral testimony and his witness statement(s).

8. Richlands Properties Ltd v Occupiers of Lot 1347 of DD102 & Anor [2021] 4 HKLRD 262

“The burden is on the squatter to prove uninterrupted possession for the requisite period and there is no presumption, whether legal or evidential, of continued possession in favour of a squatter even if adverse possession is established to have commenced.”

9. Powell v McFarlane (1979) 38 P & CR 452 at 470-471, Slade J.

“Factual possession signifies an appropriate degree of physical control. The question what acts constitute a sufficient degree of exclusive physical control must depend on the circumstances, in particular the nature of the land and the manner in which land of that nature is commonly used or enjoyed. But broadly, what must be shown as constituting factual possession is that the alleged possessor has been dealing with the land in question as an occupying owner might have been expected to deal with it and that no one else has done so.”

10. Powell v McFarlane, pp477-478.

Examples of acts showing the doer to appropriate the land concerned includes the ploughing up and cultivation of agricultural land and enclosure of land by a newly constructed fence. Enclosure is the strongest possible evidence of adverse possession, though it is not indispensable. The placing of a notice on land warning intruders to keep out, coupled with the actual enforcement of such notice, is another such act. So too is the locking or blocking of the only means of access.

11. Limitation Ordinance, Cap 347, Section 7

No action shall be brought by any other person to recover any land after the expiration of 12 years from the date on which the right of action accrued to him or, if it first accrued to some person through whom he claims, to that person

12. Limitation Ordinance, Cap 347, Section 38A

The time for bringing proceedings in respect of a cause of action to recover any land; which accrued before 1 July 1991 shall, if it has not then already expired, expire at the time when it would have expired apart from the provisions of the Limitation (Amendment) Ordinance 1991 (31 of 1991).

13. Tang Moon Lam, §§39, 43 & 45.

Where the objective fact as found by the Court is that adverse possession began on or after 1 July 1991, the squatter may be able to rely on the shorter limitation period even though he had advanced a case of earlier adverse possession. Whether or not there may be valid pleading or procedural objections against that course will of course depend on the facts of each case but it is always a matter of degree, and it can be unnecessarily demanding to require the party to plead in the prayer every possible permutation of the ultimate findings.

Furthermore, trespass is an unlawful interference with land in possession of another. In this case, the accusation against 1st defendant is a civil action, therefore, Summary Offense Ordinance and the related consequences shall not be applied. The legal principles of civil trespass are suggested in precedence cases:

1. In *Southport Corporation v Esso Petroleum Co Ltd & Another* [1954] 2 QB 182, Denning LJ held at 195:

Trespass to land. In order to support an action for trespass to land the act done by the defendant must be a physical act done by him directly on to the plaintiff's land.

2. In *Lau Tao Shing v Lau King Lim* (No. 2) [1959] HKLR 354, Hogan CJ held at 360–361:

Trespass to land consists in any unjustifiable intrusion by one person upon land in the possession of another.

Application and Analysis

In the following application and analysis, we will use the material facts and analyze whether the issues can be solved or not. We will use the two main issues that the case has pointed out to do the analysis.

Issue (1): Whether the 2nd to 4th Defendants Have Proved Exclusive Possession and Intention of Possession by Fencing for at Least 20 Years Before 2017 (Since August 1997) to Establish Adverse Possession?

The main issue is whether the 2nd, 3rd, and 4th Defendants had exclusive possession along with the requisite intention to possess the Disputed Land without hindrance for a period of 20 years preceding the year 2017 in order to satisfy the conditions of the Limitation Ordinance (Cap. 347) on Adverse Possession. The burden shifts to the Defendants to establish the mandatory elements of exclusive physical possession of the Disputed Land and intention to control it solely to the exclusion of all others.

1. Exclusive Physical Possession

To satisfy the requirement of exclusive possession, the defendants must demonstrate that they exercised continuous physical control over the Disputed Land in a manner consistent with that of an occupying owner, excluding the rightful owner and the world at large. As laid out in *Powell v McFarlane* (1979) 38 P & CR 452, at 470–471, factual possession entails dealing with the land as an owner might reasonably be expected to do, with no one else exercising control. As emphasized in *Incorporated Owners of San Po Kong Mansion v Shine Empire Ltd* (2007) 10 HKCFAR 588, 592J–593I, the question as to what acts constitute a sufficient degree of exclusive physical control must depend on the circumstances.

The defendants' claim of exclusive possession relies heavily on their assertion that the Disputed Land was fenced off as part of Lot 1838 since 1983. However, the evidence presented undermines this claim. Firstly, the defendant's side could not provide any evidence regarding the enclosed fencing since 1983, i.e. records of fences erection or maintenance, site photos with explicit dates, etc. Moreover, the aerial photograph could not capture the Disputed Land, hence the enclosure was not proven. On the other hand, the 2008 Dimension Plan, commissioned by the 2nd defendant, and the 2009 photographs submitted by the plaintiff, contradict the defendants' assertion of complete fencing or enclosure of the Disputed Land. The Dimension Plan does not depict a fully enclosed fence, while the 2009 photographs show that the land remained open and accessible. Testimony from the plaintiff's witnesses further supports this conclusion. Mr. Wong, the plaintiff's uncle, testified that the land was accessible and used by the plaintiff's family to clear drains, and Mr. Yeung, a village representative, confirmed that the Disputed Land was not fully fenced or enclosed before 2010.

The 4th defendant claimed that in 2010, a gate was installed, and the fence was remodeled. This might imply that the fencing before 2010 was incomplete. In addition, the defendants used an orange flag in 2009 in plaintiff's photograph as evidence that they have exclusive possession, but the plaintiff pointed out that the flag was placed by contractors working on a drainage improvement project to mark the lot boundary. There was also a red line marking the boundary which supports the plaintiff's argument. This might raise questions by the Court for their claim

of uninterrupted possession, as the defendants were unable to present stronger claims for their continuous occupation. Even if the flag had been placed by the 2nd defendant, it does not constitute evidence of exclusive possession. As noted in *Powell v McFarlane*, at pp. 477–478, fencing enclosure is the strongest prove of possession, but it is not indispensable, other acts, such as locking access, or placing enforceable “no trespassing” signs can be a considered as indicators of possession. In the present case, the mere presence of a flag, without additional signs and exclusionary actions, does not demonstrate the level of control needed to establish exclusive possession. The evidence, including the open and accessible nature of the land until at least 2010, undermines the defendants’ claim of physical control over the Disputed Land.

2. Intention to Possess

The intention to possess the Disputed land implies the intention to exclude the owner and everyone else. *Wong Tak Yue v Kung Kwok Wai & anor* (No 2) (1997-1998) 1 HKCFAR 55, p 68 more than explains this intention in more detail. It explains how this intention is examined objectively, which means it is based on what the defendants did and the context around them, in addition to their particular internal beliefs and values. One such intention which is of great importance here is the intention of saying “in my own name and on my own behalf”, is to exclude the world including the titular owner. The paper title world is the figurative world of legal titles that reside and are governed by a jurisdiction and the legal systems which titles exist and use. who is to be deemed, if not actually possessing, controlling and therefore subjecting to possession fiat complete dominion within the limits which legal Realms which is possible.

Defendants at the start contended that they hold a genuine and bona fide belief that the Disputed Land is included within Lot 1838. Even if there was such a mistaken interpretation of the ownership of the Disputed Land, as cited in *Wong Kar Sue & Ors v Sun Hung Kai Properties Ltd & Anor* [2006] 2 HKC 600 at §6 and *Topwell Corp Ltd v Kwan Kam Kee* [2014] 5 HKLRD 1 at §24, it is possible for a person to claim possessory title through adverse possession even when they are under the impression of being the actual owner of the land bordering their property. It is still necessary, however, to demonstrate that there was an intention to possess the land that goes beyond mere action or inaction. In this instance, the defendant’s land claim belief does not resolve the absence of complete enclosure together with acts of exclusive possession over the Disputed Land prior to 2010. The defendants claimed that they believed the Disputed Land was part of Lot 1838 and erected fencing to enclose it, but such assertion is contrary to the evidence. The fencing, as shown in the 2008 Dimension Plan and 2009 photographs, was not finished prior to 2010, and the 4th defendant admitted that he remodeled the fence in 2010.

In addition to this, before 2010, there is no sufficient proof that the respondents intended to exclude other people from the land given the three isn’t a complete and functional fence. Moreover, the defendants never placed any ‘no trespassing’ signs to mark the boundaries of exclusive ownership neither did they block entry to the area, maintain the area, or take any other steps that showcase ownership. These actions point to a lack of attempt to claim territory

In this regard, the only pointers and evidence to proof Indication of intention to possess the land is the testimony provided by the defendants. In this scenario, assessing the intention of these persons is significantly grounded on the credibility and coherence of the evidence provided by the accused. It is a critical fact that, in the determination of likelihood or unlikelihood of an event occurring which requires consideration of the logic of the events, the consistency of testimony given beyond reasonable doubt is crucial to its validity. Moreover, the testimony given should be evaluated for consistency and contradiction with claims made by the witness.

In this case, the 4th defendant was inconsistent with her evidence regarding the year the fencing was put in place, and the defendants provided insufficient supporting evidence, such as photographs or traces of physical occupation like records of maintenance, which weakens the credibility of the defendants. As per the plaintiff's witnesses, the Disputed Land was also at one time open and accessible, which further substantiates the inconsistency of the Defendants regarding the intention of possession, which makes the intention questionable.

3. Uninterrupted Possession

To claim adverse possession, the defendants are required to prove that they have uninterrupted control of the Disputed Land for a minimum of 20 years, as stated in *On Yip Property Development Co Ltd v Kwok Tai Kuen Alan* (HCMP 3192/2013, [2014] HKEC 650). The evidence, nevertheless, indicates that the Defendants did not have uninterrupted possession, if any at all. The Defendant, in this case, provided evidence that he discovered the fence around 2010 and promptly took steps by placing a demand letter in the defendants' mailbox requesting its removal. Although the plaintiff did not initiate any legal proceedings until 2017, this dispute serves as a possession disruptor because it demonstrates that the plaintiff actively opposed the defendant's claim to the land.

The defendants have not sufficiently proven either rebutting this break or showing uninterrupted possession before 2010. Their case is considerably undermined by their testimony, which relied on unsubstantiated claims lacking photographs, invoices, or maintenance records. The absence of a presumption in favor of a squatter's continued possession, as referenced in *Richlands Properties Ltd v Occupiers of Lot 1347 of DD102 & Anor* [2021] 4 HKLRD 262, places the entire burden of proof on the defendants.

Conclusion

The 2nd, 3rd and 4th defendants did not adduce exclusive control and intention over the Disputed Land for the requisite twenty (20) years period preceding the year of 2017. The 2008 Dimension Plan and 2009 images show that the land was not fully enclosed or exclusively possessed up to 2010. The 4th defendant's admission about the alteration of the fence in 2010 further undermines their claim. Their attempt to rely on the sole orange flag as proof of possession fails, as the flag does not constitute sufficient evidence of exclusive control. It is submitted that the plaintiff's actions in 2010, together with the absence of supporting evidence

from the defendants, interrupt any claim to adverse possession. In the absence of evidence demonstrating uninterrupted possession and the intention to possess, the claim must fail.

Issue (2): Whether the 1st Defendant, Tsang King Fung, Trespassed Upon the Disputed Land?

Trespass is defined as the unlawful interference with land in the possession of another. To establish trespass, the plaintiff must prove:

1. The plaintiff had possession or a better right to possession of the land;
2. The defendant interfered with the plaintiff's possession without lawful authority or justification; and
3. The interference was direct and intentional, or at least negligent.

The legal principles regarding trespass to land are further supported by the following precedents:

In *Southport Corporation v Esso Petroleum Co Ltd & Another* [1954] 2 QB 182, Denning LJ held at 195:

“Trespass to land. In order to support an action for trespass to land the act done by the defendant must be a physical act done by him directly on to the plaintiff's land.”

In *Lau Tao Shing v Lau King Lim (No. 2)* [1959] HKLR 354, Hogan CJ held at 360–361:

“Trespass to land consists in any unjustifiable intrusion by one person upon land in the possession of another.”

“The slightest crossing of the boundary is sufficient.”

1. The Plaintiff's Right to Possession

In our previous discussions, we have established that the plaintiff is the record owner of the title to the Disputed Land, and the defendants did not establish adverse possession. The 2008 Dimension Plan of Ted Chan & Associates Limited confirms that the Disputed Land is encompassed within the boundaries of the plaintiff's Lot 1837BRP, and not part of Lot 1838. It also depicts that access to the Disputed Land was open at that particular time, which supports the plaintiff's denial of adverse possession claim by the defendants.

Based on the principles enunciated in *Lau Tao Shing v Lau King Lim (No. 2)*, it is clear that the plaintiff, as a natural possessor, is entitled to claim exclusive possession of the Disputed Land. Also, in case the 1st defendant, without any justification, tends to assert about the land, it shall amount to pure trespass and is wholly unlawful for the defendant.

2. The 1st Defendant's Involvement in the Alleged Trespass

The 1st defendant became a registered proprietor of Lot 1838 in December 2015. By this point in time, he was still a minor as he turned 15 only in 2010 when the fence was remodeled. It is common ground that the 1st Defendant did not participate in any way in the construction or remodeling of the fence. Given his age and absence of involvement at the time, it is highly improbable he encroached upon or tampered with the Disputed Land prior to 2015.

The claim by the plaintiff against the 1st defendant seems to be based solely on the assumption that he bears some burden in the controversy over Lot 1838, which includes the contested fence. But, as held in *Southport Corporation v Esso Petroleum Co Ltd*, there must be a physical act of trespass done on the premises for someone to be accused of trespass and this simply cannot be ownership of other land adjacent to the contested land. In the absence of some evidence of participation or endorsement of such interference, the mere ownership of land beside the land in question is not sufficient.

There is no evidence that the 1st defendant physically entered into Disputed Land, supervised the construction or alteration of the fence, or took any action that would interfere with the possession of the plaintiff.

3. The Plaintiff's Evidence

Consideration for defendant number one's registered proprietorship for lot 1838 seem to be received far too strongly, particularly in light of the police letters indicating the same. In the words of Denning LJ in *Southport Corporation v Esso Petroleum Co Ltd*, 'there must be some positive act, that is, some physical deed performed by the defendant' for any action in trespass, and, 'direct' would mean no retroactive ownership of the land will suffice to label one as a trespasser in the absence of evidence of actual encroachment and land confiscation.

Further supporting the case of the 1st defendant not having committed the alleged trespass is the 2008 Dimension Plan as well as photographs from 2009. Neither exhibits any fenced perimeter of the Disputed Land which bypasses any argument for its purported enclosure back in 2008. Moreover, the imagery of the Disputed Land indeed showcases it as freely unobstructed in the year 2009. The 1st defendant's claimed herd fencing, while still a minor, during the year of 2010 is unreasonable to ascribe to him.

As indicated in *Lau Tao Shing v Lau King Lim (No. 2)*, mere ownership does not constitute trespass without some form of physical encroachment. The plaintiff has not produced any evidence that shows actual physical interference by the 1st defendant

4. The 1st Defendant's Testimony

The 1st defendant testified that he was not involved in the construction or remodeling of the fence and had no direct involvement with the Disputed Land. He stated that he only became the registered owner of Lot 1838 in December 2015 and that he has never personally entered or interfered with the Disputed Land.

This testimony aligns with the timeline of events and the evidence presented, particularly the 2008 Dimension Plan and the plaintiff's photographs, which show that the Disputed Land was not enclosed until after the fence was remodeled in 2010. The 4th defendant's testimony corroborates this timeline, indicating that the fence was remodeled by the 2nd defendant, not the 1st defendant.

As noted in *Southport Corporation v Esso Petroleum Co Ltd*, trespass requires a direct physical act on the plaintiff's land. The 1st defendant's lack of involvement in the construction and his absence from the Disputed Land confirm that no such act occurred.

5. Legal Analysis

To prove trespass, the plaintiff has to prove that there is a direct and intentional act of interference with their possession of the land. In *Lau Tao Shing v Lau King Lim* (No. 2), Hogan CJ noted that the boundary being crossed, no matter how minute, constitutes an act of trespass. However, that crossing must result from a direct and unjustifiable intervention by the defendant. Denning LJ, too, as in *Southport Corporation v Esso Petroleum Co Ltd*, remarked that direct intervention by the defendant on the plaintiff's land is of primary concern.

In this situation, there is no proof that the 1st defendant did any direct physical act with respect to the interference of the Disputed Land. The fence having been remodeled in 2010 while the 1st defendant was only 15 years of age further backs the claim that he had no participation in a trespass. Moreover, the plaintiff has not demonstrated that the 1st defendant went onto the Disputed Land, or purported to interfere with the Disputed Land after he had become the registered proprietor of Lot 1838 in 2015. To prove trespass, the plaintiff has to prove that there is a direct and intentional act of interference with their possession of the land. In *Lau Tao Shing v Lau King Lim* (No. 2), Hogan CJ noted that the boundary being crossed, no matter how minute, constitutes an act of trespass. However, that crossing must result from a direct and unjustifiable intervention by the defendant. Denning LJ, too, as in *Southport Corporation v Esso Petroleum Co Ltd*, remarked that direct intervention by the defendant on the plaintiff's land is of primary concern.

Conclusion

The first defendant did not in fact encroach upon the disputed land. Although he became the registered owner of Plot No. 1838 in 2015, there is no evidence that he personally entered or interfered with the disputed land. The precedents in *Southport Corporation v Esso Petroleum Co Ltd* and *Lau Tao Shing v. Lau King Lim* (No. 2) emphasized the need for direct physical conduct to establish trespass, which was not present in the present case. This conclusion is further supported by the 2008 Dimension Plan and other evidence indicating that the alleged interference occurred prior to the first defendant's possession or involvement. The plaintiff failed to prove that the first defendant committed any direct or intentional interference amounting to trespassing.

Judgement

In this section, we would like to present the judgment that the court has delivered.

The Plaintiff claims against the 1st defendant, **TSANG KING FUNG**. He has been unsuccessful. The Plaintiff failed to establish that the 1st defendant had any involvement in or authorized the erection of the fencing on the Disputed Land. At the time of the alleged trespass, the 1st defendant was still a minor and did not become the registered owner of Lot 1838 until 2015. There was no evidence presented that the 1st defendant played any role in the erection of the fencing or the subsequent use of the Disputed Land. The court accepted that the 1st defendant could not be held liable for the actions of the 2nd to 4th defendants, who were the primary individuals occupying Lot 1838. Consequently, the plaintiff's claim against the 1st defendant was dismissed.

In below, I will talk about how the 2nd to 4th defendants have been judged in different aspects.

Firstly, the plaintiff's claim against the 2nd to 4th defendants has been successful. The court ruled that adverse possession was not established for the Disputed Land, which forms part of Lot 1837 S.B RP. And the 2nd to 4th defendant has failed to show the exclusive possession of the Disputed Land for 20 years (requirements). For the 4th defendant's testimony, she claimed that the Disputed Land had been enclosed since 1983, but she was contradicted by aerial photograph evidence presented by the plaintiff, which showed that the entrance to the Disputed Land was unclosed during the key periods in 2009. The Dimension Plan, commissioned by the 2nd defendant in 2008, showed that the Disputed Land was not enclosed at the time, contradicting the defendants' claim that it had been enclosed since 1983. Then, the court further noticed that the defendants have failed to provide any documentary evidence, such as invoices or photographs, to support their claim. Also, the plaintiff's title to the Disputed Land remains valid, and the 2nd and 4th defendants are treated as trespassers.

Secondly, the plaintiff was awarded possession of the Disputed Land. The court orders the 2nd and 4th defendants to vacate the Disputed Land within 28 days and to demolish and remove all the structures erected on or over the land within the same period.

Thirdly, the court found significant inconsistencies in the 4th defendant's testimony, particularly regarding the timeline and nature of the fencing modifications on the Disputed Land. Her evidence was contradicted by the plaintiff's photographs and the dimension plan. It collectively undermined her credibility. The court held that the defendant's attempts to establish adverse possession were not supported by compelling evidence and led to the conclusion that the defendants were trespassers on the Plaintiff's land.

Lastly, regarding costs. The court ruled that the plaintiff is to bear the 1st defendant's costs, with a certificate for counsel, as the claim against him was unsuccessful. However, the 2nd to 4th defendants are to bear the plaintiff's cost of the action. It includes the cost of their unsuccessful

counterclaim, and with a certificate for counsel. And the court thanked all counsel and the expert surveyor. Mr. Eric Tang Sze Kin of Eric Tang & Associates Ltd, for their assistance in presenting the facts and ensuring fairness in the case.

The role of land surveyors in the case

Land surveyors play an important role in resolving land boundary disputes. They provide court analysis, expertise, and opinions. They tend to use survey records, aerial photographs, and other legal documents, and through their findings the court can likely reach a fair decision. In this case, we can also see the role and contributions of Mr. Eric Tang to the case.

In this case, the plaintiff claimed the defendants have trespassed the Disputed Land, while the defendants counter claimed that they should have adverse possession. The defendants claimed that they have had the Disputed Land fully fenced and enclosed since 1983, fulfilling the 20-year limitation period requirement to establish adverse possession. On the other hand, the plaintiff argued that the Disputed Land was enclosed only since 2010, thus they might have insufficient possession.

In this case, the plaintiff's expert is Mr. Tang, and he has presented numerous pieces of evidence to the Court, including aerial photographs, Dimension Plan, and Rectification Plan, and can be traced back as far as to 1976.

Firstly, for the aerial photographs, Mr. Tang noticed that the Disputed Land as shown in the aerial photographs in 1980, was covered by the spread of trees, which made it difficult to see the physical features such as the fences.

Secondly, Mr. Tang also examined the Dimension Plan and the Rectification Plan. He noticed that the survey sheets and the plans did not depict any fencing or enclosure in the Disputed Land, only until 2008, the fencing appeared to have partial enclosure. Only until 2014, the Rectification Plan shows the fencing is fully enclosed the Disputed Land, which contradicts with the defendants' claim that it had been enclosed since 1983. Thus, Mr. Tang concluded that the Disputed Land was likely enclosed between 2008 and 2014, and it was still insufficient to meet the 20-year requirement to hold up the defendant's claim for adverse possession. This shows that Mr. Tang's role is an impartial third party that presents to the court factual evidence, with expert opinion.

In addition, Mr. Tang also addressed the court's issues and concerns with his other findings. Take the example from his expert report, he believed that some of the evidence has limitations, such as the aerial photographs might have distortions caused by camera angles and terrain variations. To address this issue, Mr. Tang also relied on multiple sources to provide an analysis for the full picture – including survey sheets, aerial photographs, and site visits, which we think have provided a consistent and reliable timeline of events. In addition to his expertise as a

licensed surveyor, he has also given his professional opinion, which has likely helped the court to see that the defendants' claim for adverse possession was not backed by strong evidence.

In conclusion, the Court had likely relied on Mr. Tang's expert testimony to reject the defendants' counterclaim for adverse possession. He has presented concrete evidence using the Dimension Plan and the Rectification Plan, and the plaintiff taken photographs in 2009, showing the Disputed Land did not have fencing. The combined evidence is crucial for the Court to reason that the defendants did not continuously occupy the Disputed Land for 20 years for adverse possession. On the other hand, without sufficient primary and relevant evidence, the defendants were in an unfavorable position to disprove Mr. Tang's professional findings. This case also shows the importance of a land surveyor in land dispute court cases. Mr. Tang has shown and interpret technical evidence for the Court, while maintaining his professional and impartial manner, which we believe has greatly helped the court to resolve the dispute and finally come to a conclusion. Overall, land surveyors as experts in land dispute court cases can ensure the decisions are based on accurate and reliable technical evidence.

Our own opinion

We think that the Court's decision is well-reasoned and justified in multiple aspects.

First of all, the plaintiff has made strong arguments in this case. The Plaintiff has presented land registration documents and some reliable sources such as the Dimension Plan, Rectification Plan, and the aerial photographs. The judge found the evidence credible and persuasive, thus accepted the Plaintiff's evidence. Besides, as the plaintiff of the case and the registered owner of the property, it is Mr. Wong's responsibility to present proof to the Court, which appears that his duty is fulfilled.

Second, it appears that there are weaknesses in the defendants' points in the cases. The Defendants have attempted to claim adverse possession, but to establish such claims, one must provide proof for their uninterrupted occupation over the limitation period. It appears like the Defendants' claims were insufficiently substantiated, as they relied heavily on unsupported statements and failed to provide documentation and concrete evidence.

Besides insufficient evidence, one of the Defendants also contradicted her written testimony, which appears to worsen their position. The 4th Defendant said the fencing was done in 2009 instead of 2010 as in her testimony, after the plaintiff has presented the relevant aerial photographs. We think that the Court will accept the evidence that is more compelling, and self-contradiction likely affects the credibility of the evidence. This also demonstrates how important the evidence is when claiming adverse possession, and if the evidence is not credible enough, it may raise the doubts of the judge on one's arguments.

Thirdly, we believe that the judgements are based on the facts. This can be seen in the court's reasonings, they were carried out based on the legal framework. The court focuses on the legal

documents such as the Dimension Plan and aerial photographs, which can likely reconstruct the factual events. For example, the Plan in 2008 and the photographs taken by the Plaintiff in 2009 disproved the Defendant's claims of continuous enclosure of the Disputed Land. This example shows that the court will make judgement based on the facts.

Fourthly, we believe that the judgements are based on fairness and practicality. This can be seen from the Court's discharge of the 1st Defendant from all obligations and responsibilities. The Plaintiff has failed to show relevant evidence which could show that the 1st Defendant took part in the fencing or gave permission for it to be done. The judge also considered whether it was reasonable for the 1st Defendant for his actions, this can be seen from the judge accepting the 1st Defendant's age of 15 years old, during the supposed time of the events. Overall, we think that the judge has reinforced the reasonableness of this conclusion.

Lastly, we believe the Court tends to reinforce ownership rights. This can be seen from the defendants attempting to counter-claim Plaintiff for adverse possession. The judge then requires the Defendants to present their evidence, because to be the claimant of the case, one must have the burden of proof. However, the defendants have failed to present their evidence of 20 years of uninterrupted, exclusive possession of the land. We believe the counterclaim was rightfully dismissed and the possession rights should belong to the plaintiff. Overall, the ownership rights should not be taken away without strong, clear and credible proof to support the case, we think that the Court has shown their reinforcement of ownership rights by requiring the basic premise.

In conclusion, we find the Court's judgement well-reasoned and justified since the plaintiff has presented credible documentary evidence to support his ownership claim, while the Defendants failed to meet the burden of proof to establish adverse possession through their evidence. The court has also discharged the 1st Defendant, while preserving registered ownership rights, also makes the judgement sounder and fairer. We believe the Court's reasoning and conclusions are fair, and in line with the legal principles.

However, we also have other insights about the case.

Firstly, we should also consider whether the fencing itself is the property or not, because that might establish the proprietary estoppel (禁止反言). Even if the chances are unlikely, it is important for the Court to also consider this possibility for the judgement to be sound. The Dimension Plan in 2008 shows the fence had already existed, but not yet fully enclosed. This means the Defendants have already erected the fence before the date. The Defendants might have already spent money, time, and labor costs on the fencing. In this case, the Defendants did not show sufficient evidence of their intention of occupation, in other scenarios there could be other usages as well, for instance farming, or erecting small huts. According to the previous case in CACV 107/2017,

“[w]here an owner becomes aware that someone is attempting to dispose of his property”, and in such circumstances “he is bound to assert his rights and, if he fails to do so, he may be estopped against the disponent”. “His silence may be a representation either that he has no title or that the person dealing with the property has his authority”.

In other words, if the claimant or owner knows there is property mistakenly erected by the trespasser, and chooses to stay silent, as an attempt to claim the property altogether, such action will be disallowed by the court. We think that the court should also consider whether the intention of the plaintiff is to claim the defendants’ fencing. The plaintiff’s actions might raise suspicions for his actions according to the following timeline:

- In 2008, the fencing already existed as in the Dimension Plan, just not fully enclosed.
- In 2010, the Plaintiff sent a warning letter and knocked on the door, however, the defendant disagrees and claimed that the family received his first notice in 2015. Furthermore, there is no third party to prove the plaintiff’s warning letter.
- In 2015, the 4th Defendant admitted she has received a warning letter from the Plaintiff, though without third party proof, this is a common ground between the plaintiff and the defendant.
- In 2017, the Plaintiff finally called the police to take action, and this event likely has third party proof.

We think that it is slightly strange for the Plaintiff not to escalate the situation to the Court for 7 years (2010 to 2017), especially since the fence had already existed since 2008. Though the warning letter demanded the removal of the fencing, his slow actions might raise suspicions of whether he also sees the fencing as a property. Therefore, in a highly unlikely event, the Plaintiff might want the Defendants to build a fence for him, then claim for trespassing to claim the fence altogether. Alternatively, if the fencing contains some valuable yet immovable assets, such as farmlands or houses, and the plaintiff tries to claim trespassing under the same conditions in this case, his actions might be stopped by the principles of Proprietary Estoppel. Overall, this insight is to explore the possibility of a proprietary estoppel if the defendant had more valuable assets or more proof of their occupation. We still think that the Court’s decisions on the defendants’ occupation and evidence are insufficient, and it was a fair judgement favoring the Plaintiff’s side.

Limitation period and its application in this case

We believe the position that the Limitation Period is enforced in these circumstances needs more profound consideration. In the ruling, the court used a 20-year limitation period requiring the defendants to prove uninterrupted adverse possession over the disputed land from August 1997, which was the trigger date for the plaintiff’s proceedings in August 2017.

But based on the Limitation Ordinance (Cap 347), the period for claiming possession (i.e., the limitation period) for adverse possession was altered to 12 years in cases where the adverse possession started on or after July 1, 1991, courtesy of the 1991 Limitation (Amendment)

Ordinance. As is well known in the case of *Tang Moon Lam v Tang Chung Wah and Another* (2013) HKCFA 16, §§39, 43 & 45, if objective facts demonstrate that the start date of adverse possession falls on or after July 1, 1991, the squatter will be entitled to assert the shorter 12-year timeframe even if they initially sought a longer duration of 16 years claiming possession commencing prior to that date.

Uncertainty regarding the date adverse possession began

In this case, the exact date of adverse possession is unclear, especially in the case of enclosure of disputed land. The defendant argued that the fencing operation took place in 1983. This means that the adverse possession would have commenced prior to July 1, 1991, thereby satisfying the prescribed 20-year statute of limitations. In any event, the evidence adduced by the defendants was incomplete and inconsistent, particularly the plaintiff's evidence. For example, the plaintiff provided photographs and documents proving that no fence had been constructed prior to 2009.

Considering the uncertainty about the actual date when the adverse possession began, we believe that the court should consider the case of adverse possession that commenced on or after July 1, 1991, in which case the 12-year statute of limitations would apply.

Concerns about the defendants' testimony

The defendant's credibility is the main bone of contention in this case. The second and third defendants did not testify in court, citing old age and poor health as reasons. Their case relied heavily on the testimony of the fourth defendant to explain themselves for them. Unfortunately, there are some discrepancies between the fourth defendant's account and the timetable for fencing and improvement works on the disputed land. This causes doubt on the accuracy of the claim that the fence was first erected in 1983.

Furthermore, the absence of direct testimony by the second and third defendants renders their allegations weak, especially in view of the fact that they were allegedly the main players in the enclosure operation in the disputed territory. In the absence of convincing evidence, it is more likely that the adverse possession began after 1983, possibly after July 1, 1991.

The Court's application of the 20-year limitation period

The court applies for the 20-year limitation period because the defendants argued that they had been exercising possession of the land in question since 1983. But it is worth asking whether the court should also consider the possibility of a 12-year limitation period considering the ambiguity around the start date of adverse possession.

The case was filed in 2017, which means that if the case had a 12-year limitation period, the defendants would only need to prove uninterrupted possession of the contested land since 2005. However, in the case of the 20-year limitation period, the defendants were required to prove

possession from August 1997. This difference is quite important because it increases the evidentiary burden on the defendants.

An Alternative Scenario

The defendants could have succeeded by showing exclusive possession from 2005 onward, even if they failed to show their claim of possession beginning in 1983, had the court taken the 12-year statute of limitations into account. The reduced 12-year statute of limitations would still have been satisfied. For example, the defendants may have satisfied the shorter 12-year limitation period if they could show continuous possession starting in 2005 but were unable to prove possession during the years 1983 to 2005.

Even though this alternate scenario is impossible in considering the facts in this case, it shows how important it is to take the 12-year statute of limitations into consideration when determining when adverse possession began.

Final Observations

Overall, applying the 20-year limitation period in this case seems logical, balanced, and reasonable, particularly in light of the fact that it went unchallenged by any of the parties involved in the proceedings. Nonetheless, we would like to point out that there must be more caution in determining the timeline concerning the limitation period within the context of adverse possession cases like this one. This is especially true when dealing with disputed or blurry beginnings pertaining to the onset of adverse possession.

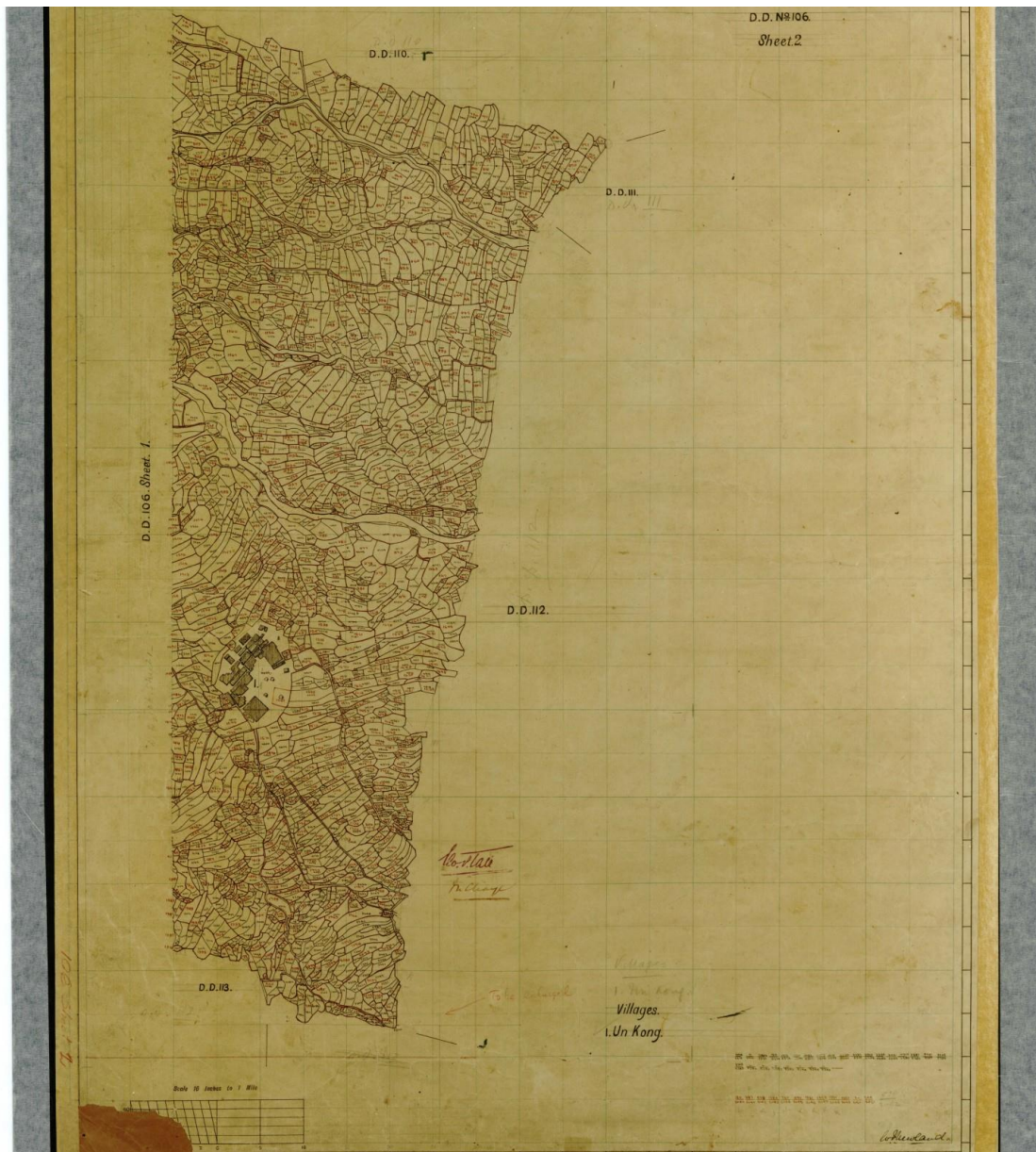
Had the court been more flexible in assuming a 12-year limitation period, it could have assessed the defendants' possession of the disputed land with a more comprehensive perspective. For example, the court could have analyzed whether the defendants' possession satisfied the legal prerequisites of adverse possession irrespective of the period, whether it adopted a shorter or longer timeframe. This would have been justified based on the fairness principle in examination of evidence, legal analysis in this case.

Conclusion

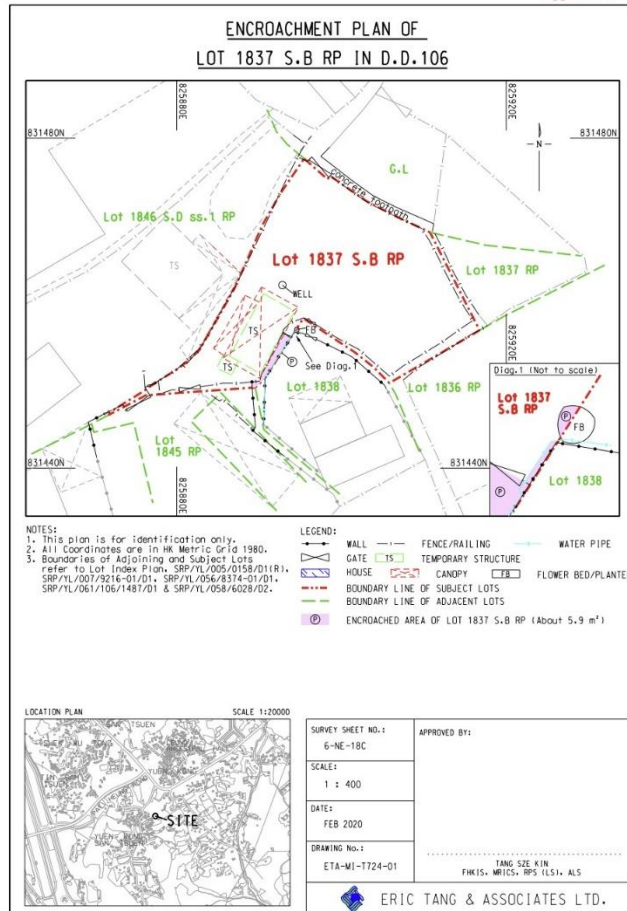
In conclusion, we believe that the court's judgement is well-reasoned and fair. The plaintiff has shown strong evidence with the dimension plan and aerial photographs, while the defendants have failed to show sufficient evidence. The Court has accepted the plaintiff's evidence to show that the court reasons are based on the fact, and the discharge of the 1st defendant shows the court also considers the reasonableness of the events. Overall, the court has reinforced the owner rights of the plaintiff. However, we also recognize potential complexities, such as the possibility of proprietary estoppel and the varying limitation periods. Ultimately, we believe that the court's

judgement aligns with the legal principles, priorities credible evidence, and protects the owner's right, making the case sound and fair to this dispute.

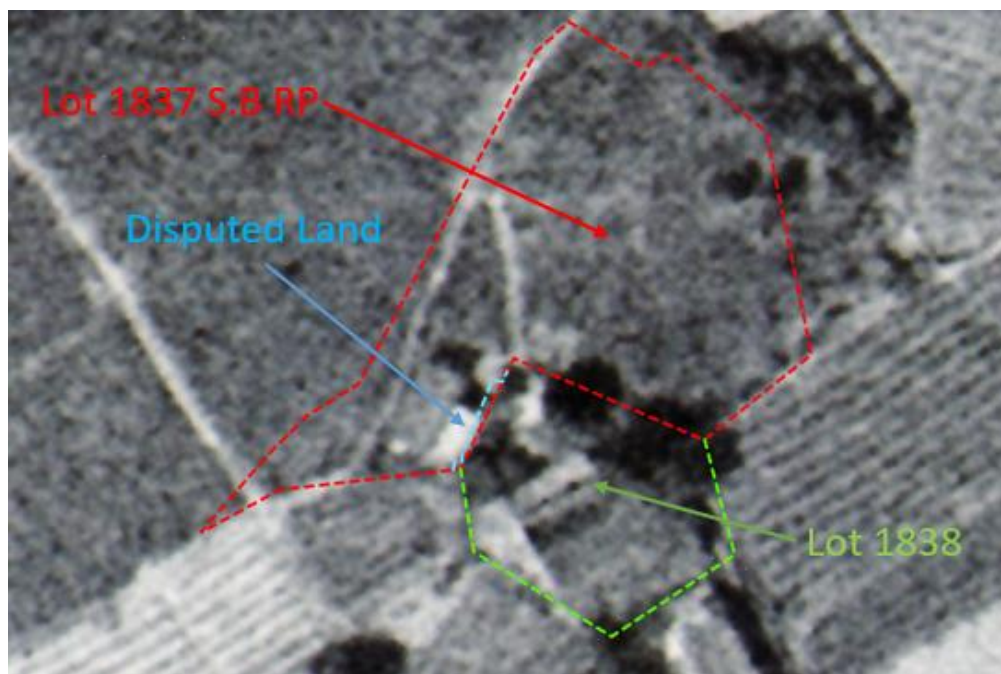
Appendix



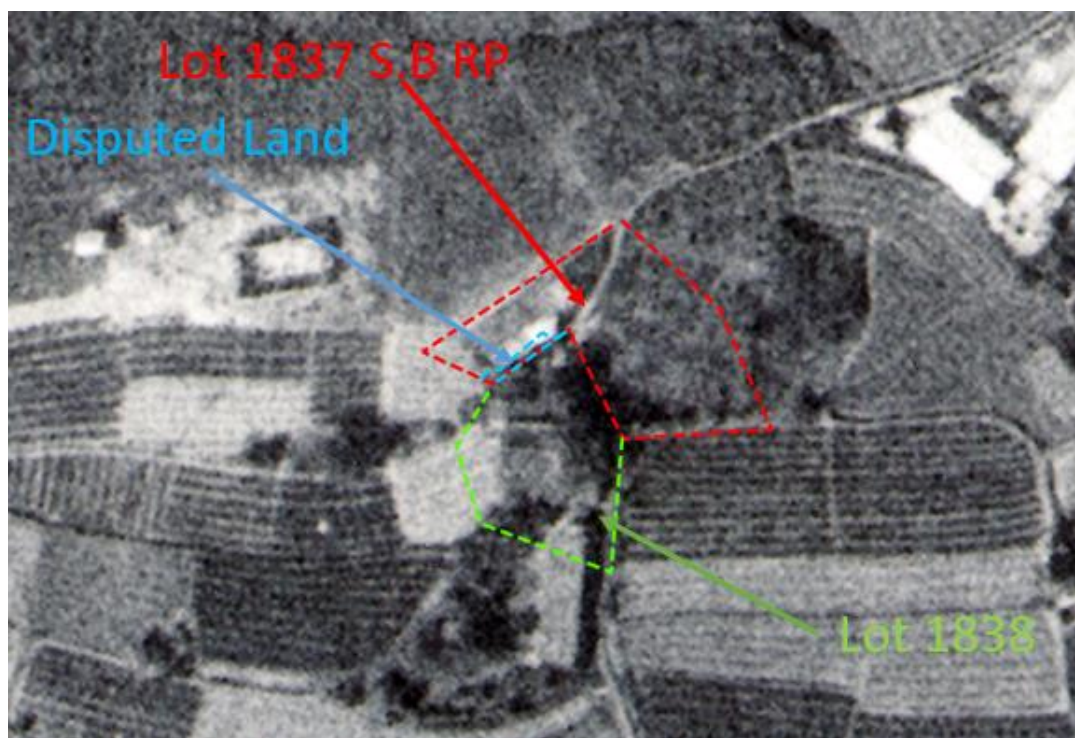
D.D. Field Sheet of Lot 1837 S.B RP



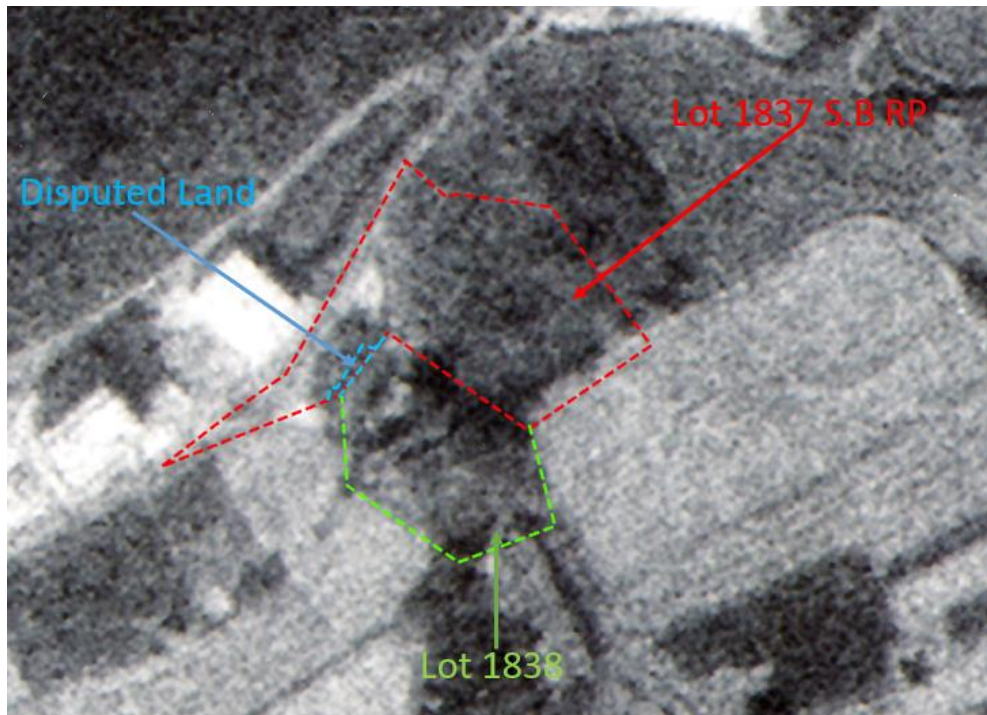
Encroachment Plan of Lot 1837 S.B RP in D.D. 106



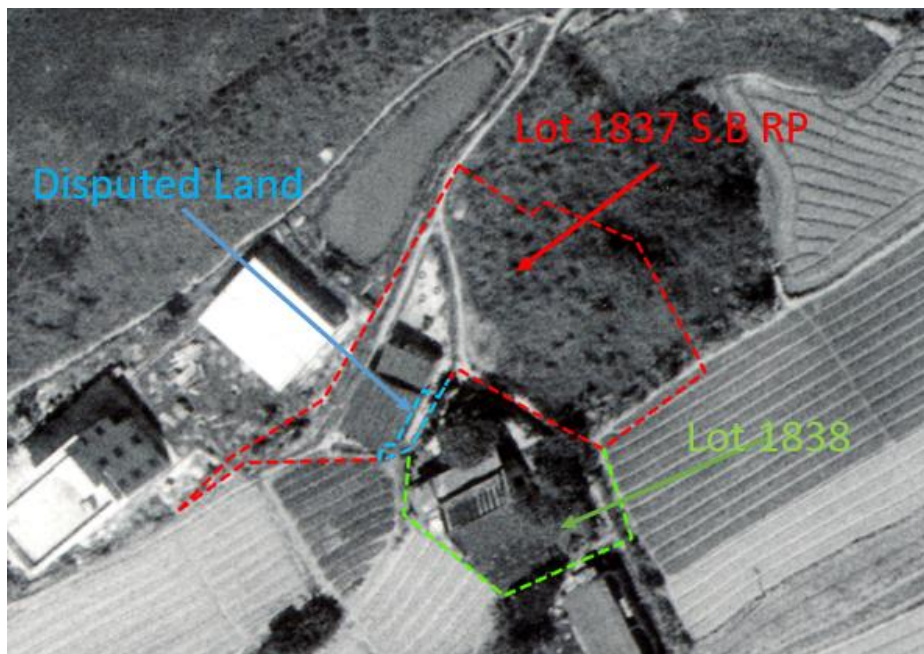
23 Nov 1976 Aerial Photograph (16490)



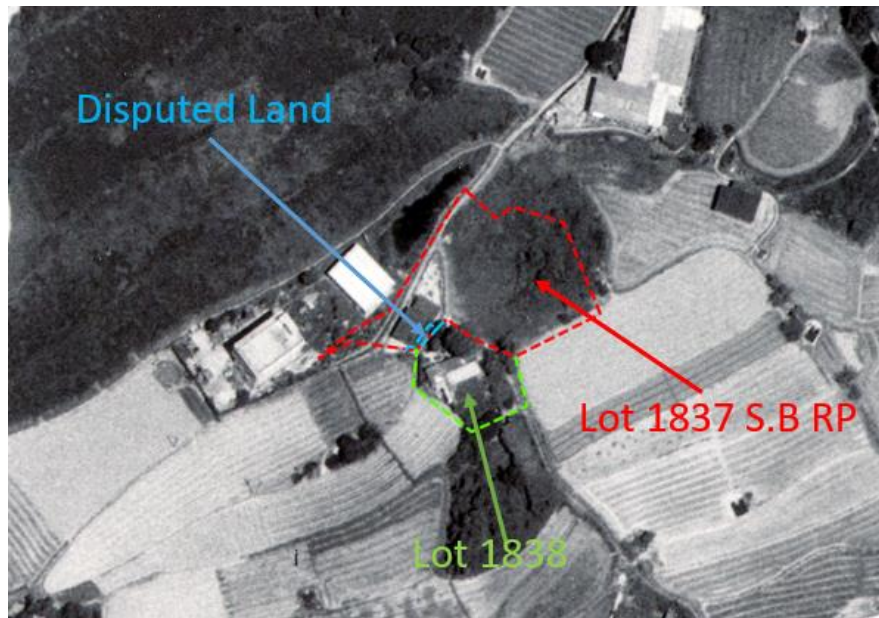
9 Dec 1977 Aerial Photograph (19874)



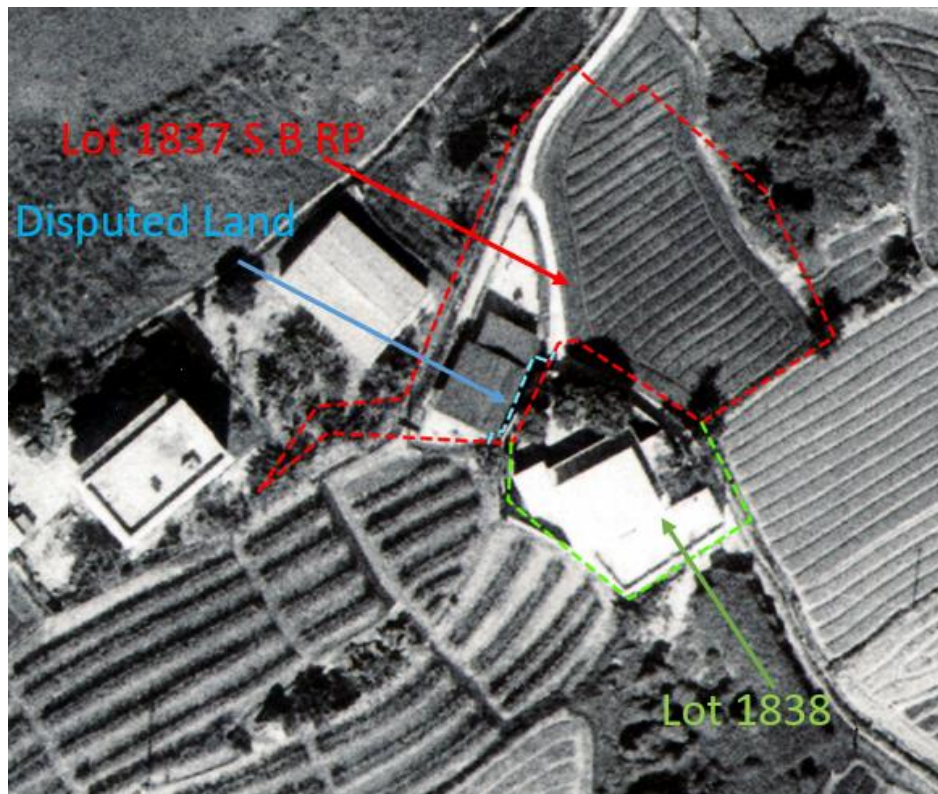
15 Dec 1978 Aerial Photograph (24554)



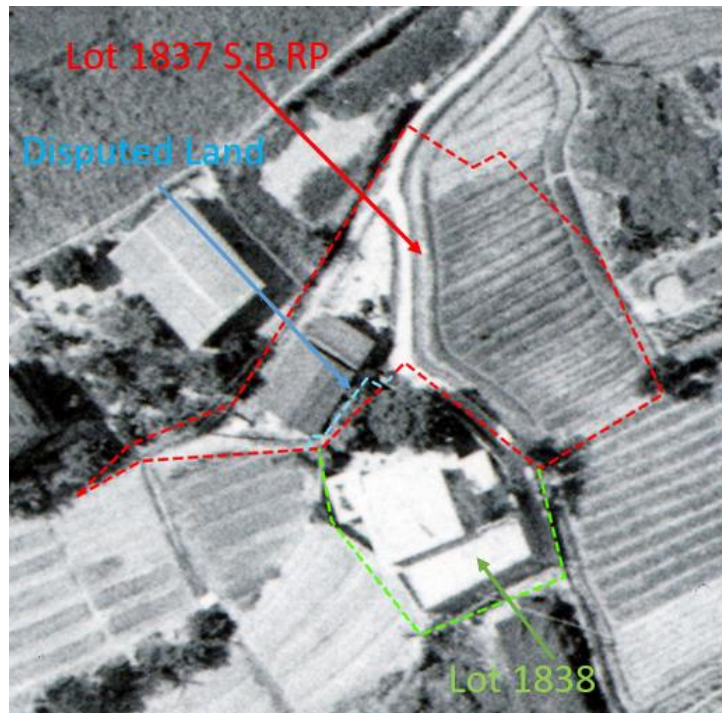
5 Oct 1979 Aerial Photograph (27666)



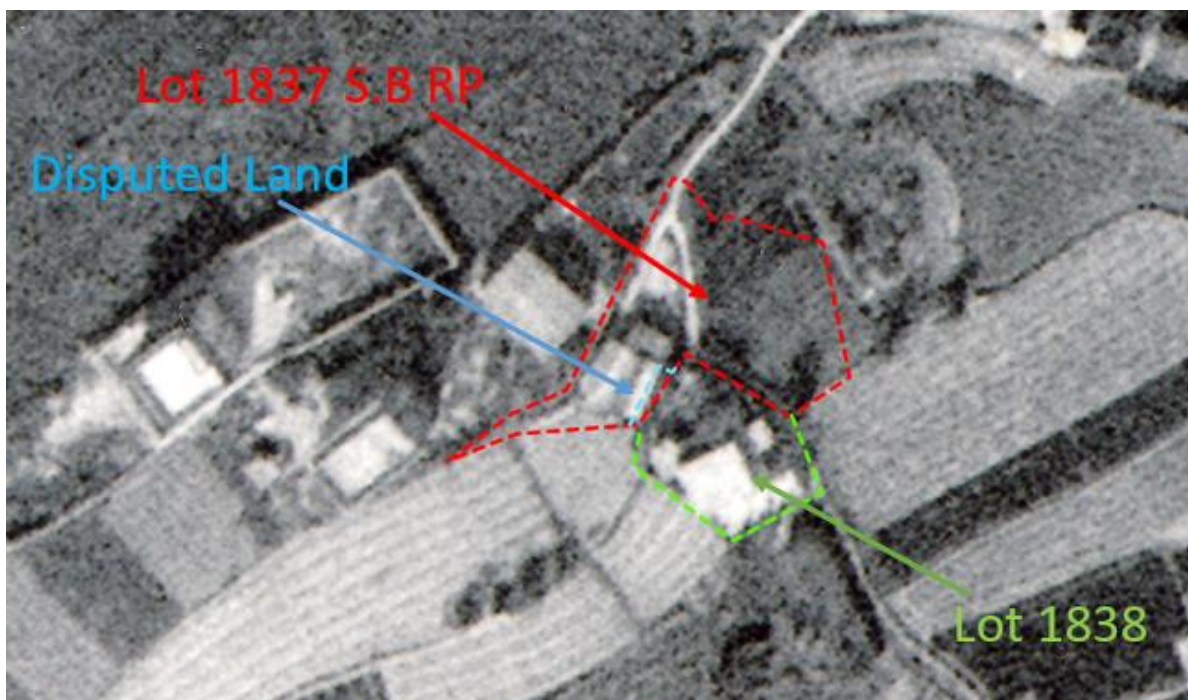
11 Sept 1980 Aerial Photograph (31521)



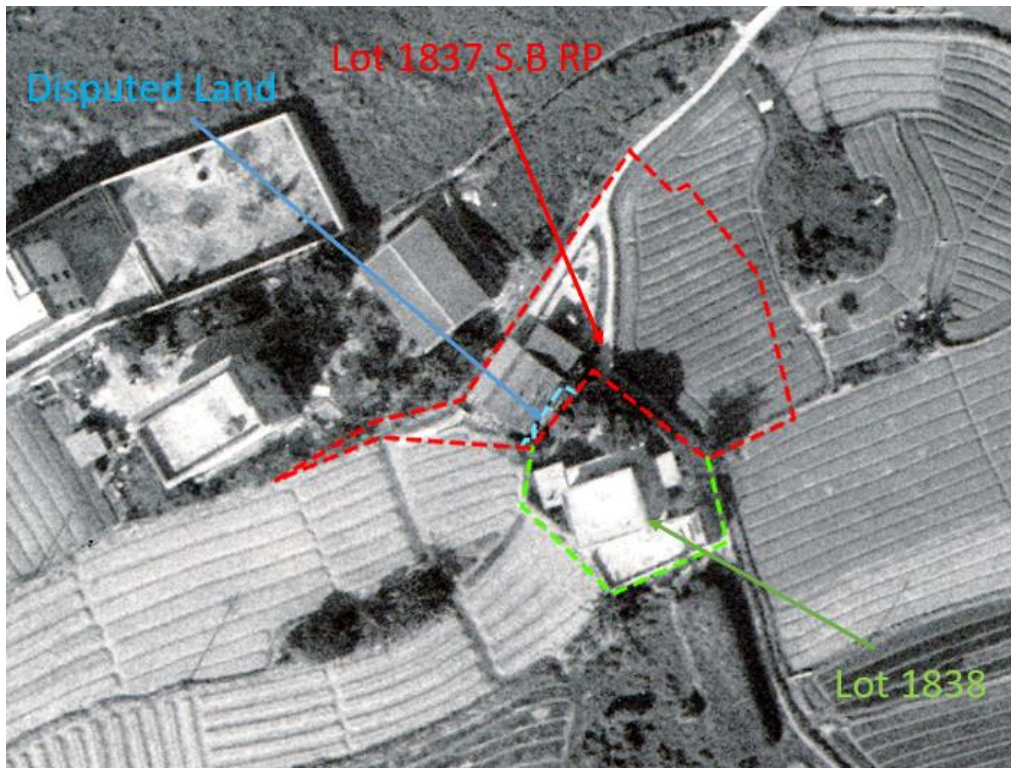
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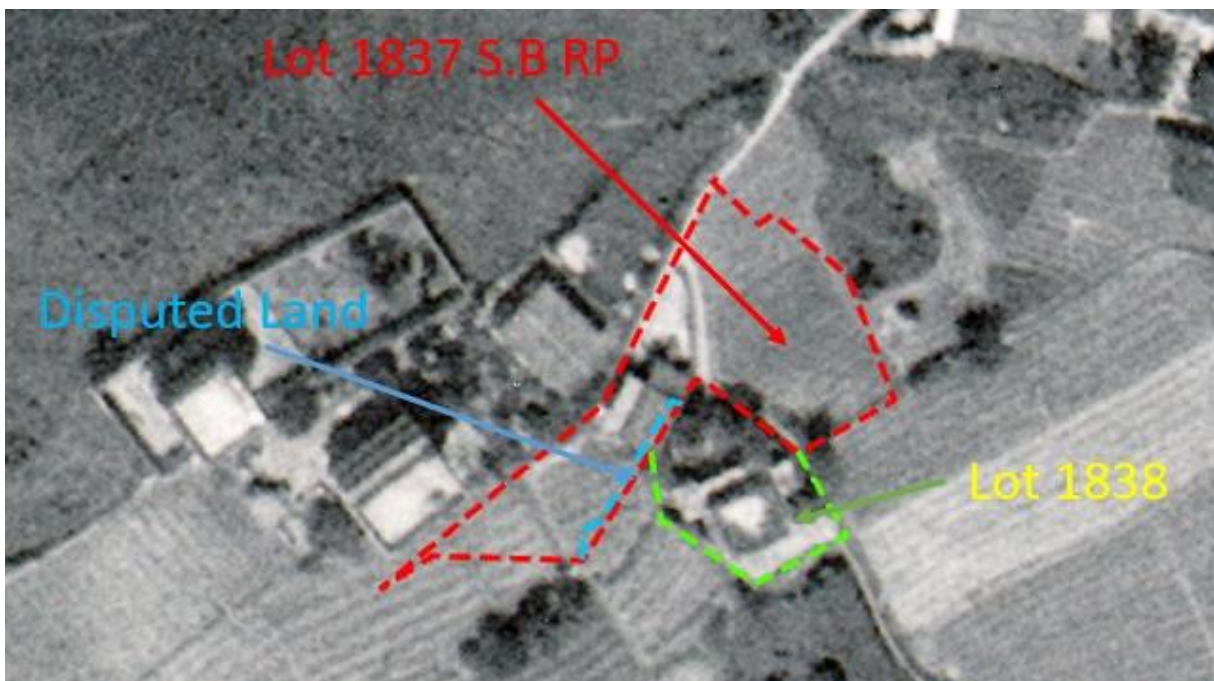
27 Jul 1982 Aerial Photograph (42991)



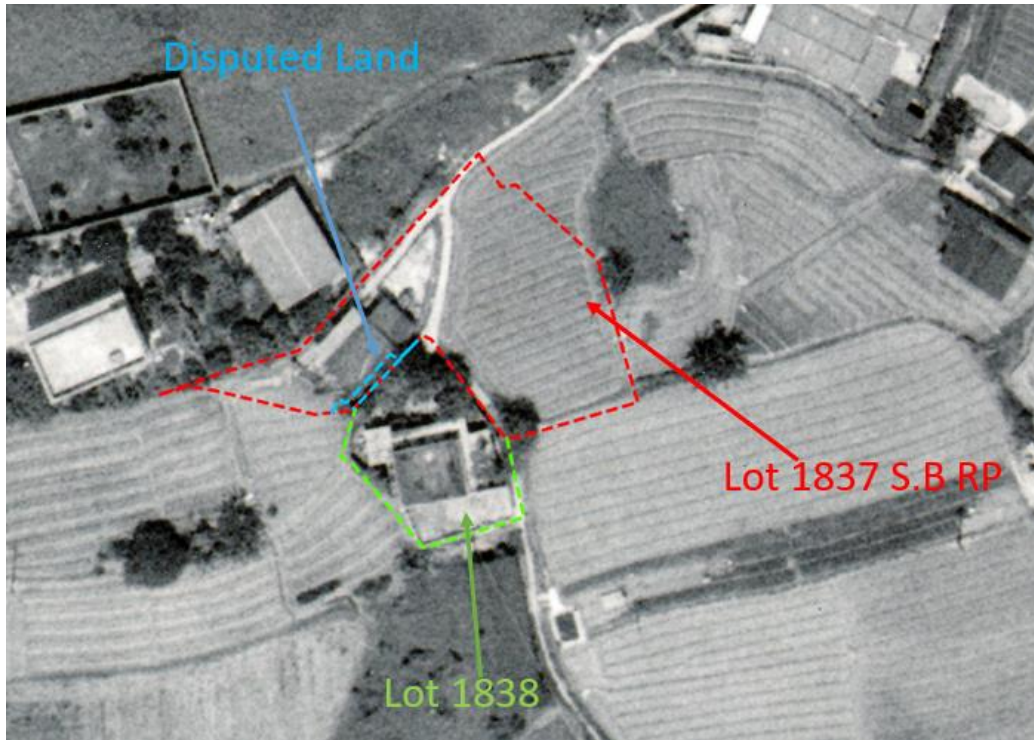
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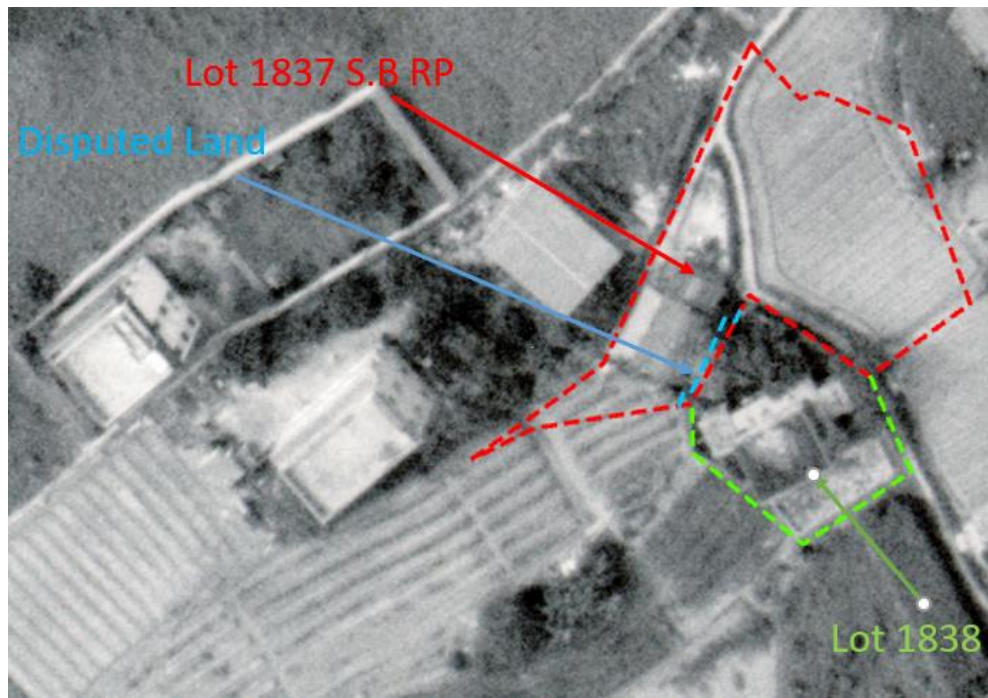
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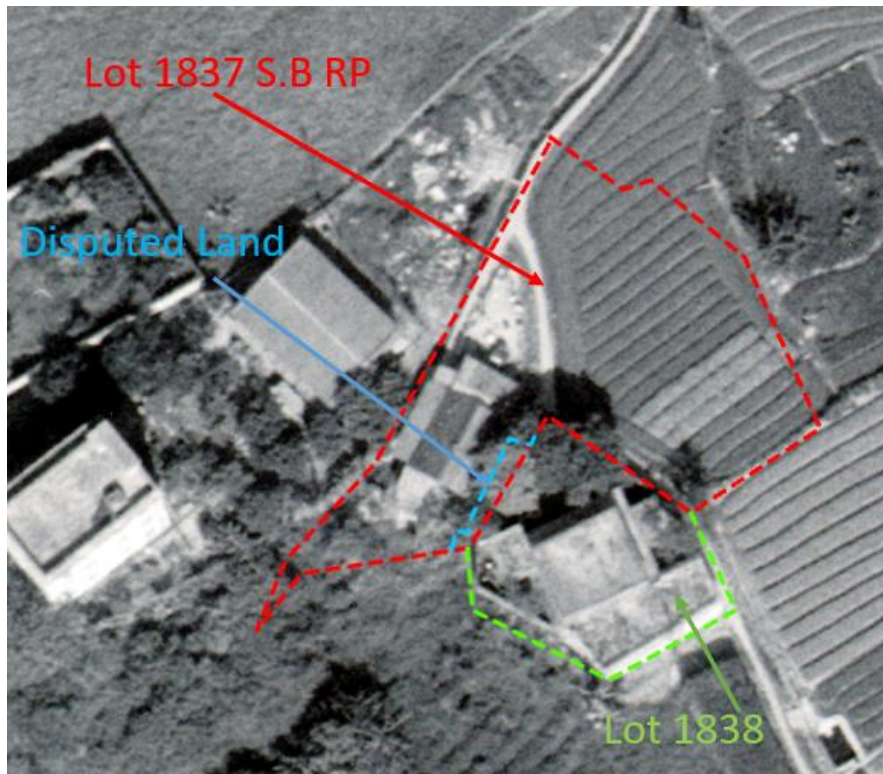
1 Oct 1985 Aerial Photograph (67311)



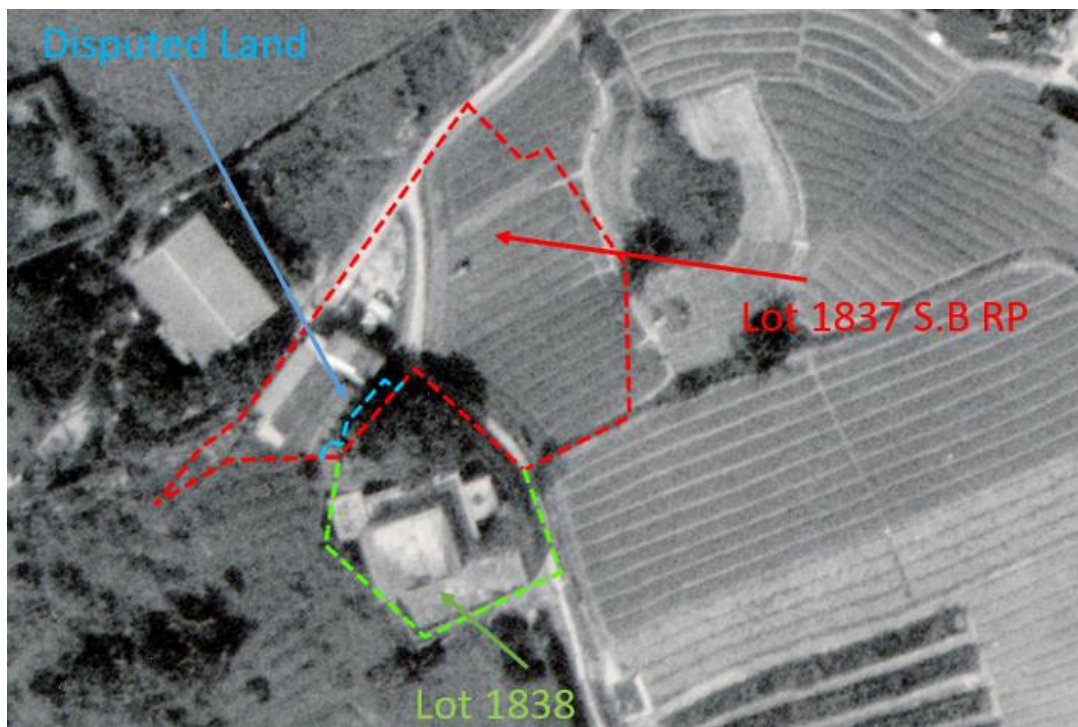
17 Sept 1986 Aerial Photograph (A05789)



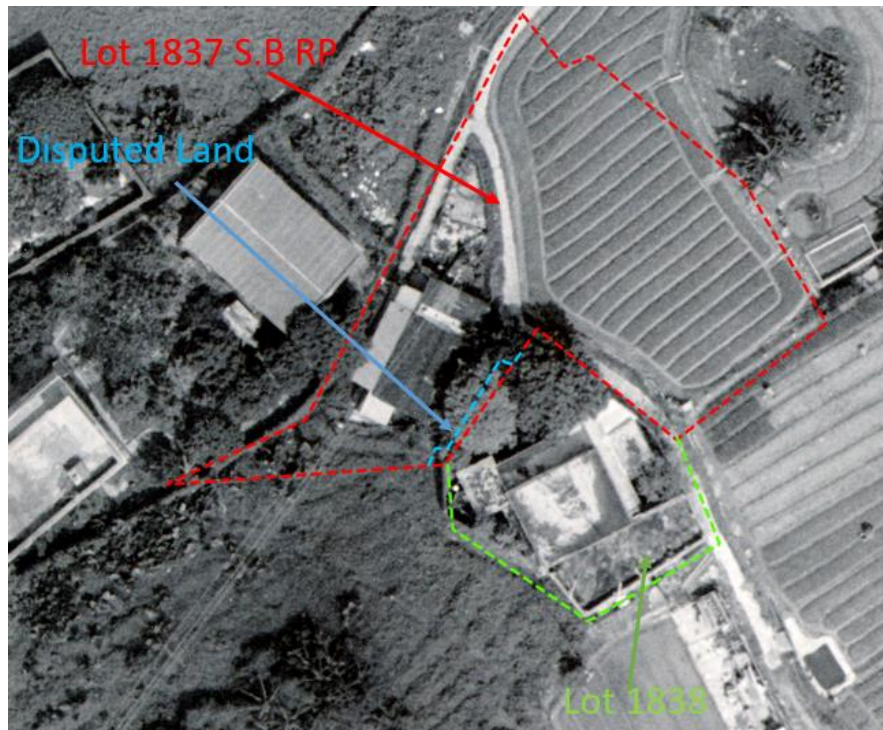
10 Jun 1987 Aerial Photograph (A09330)



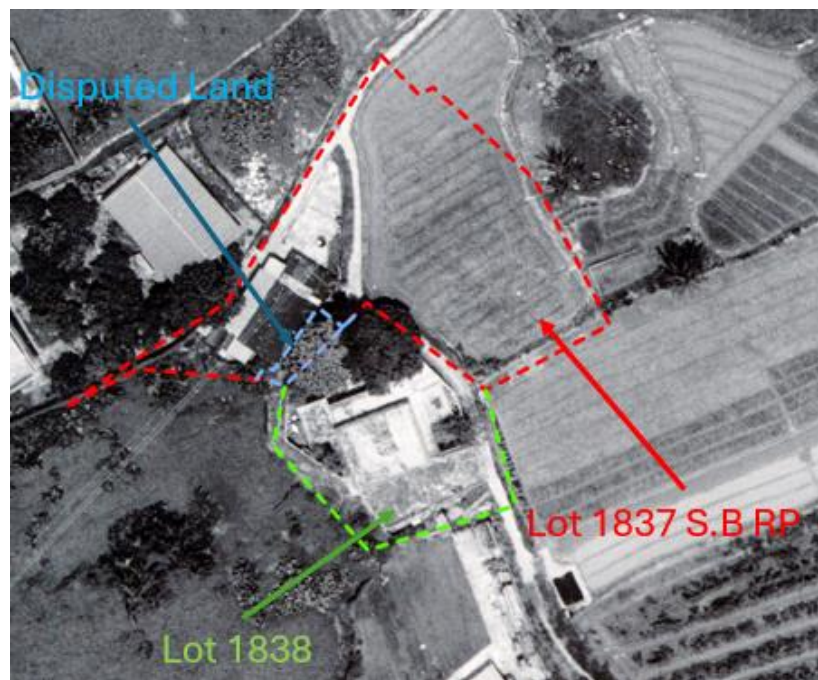
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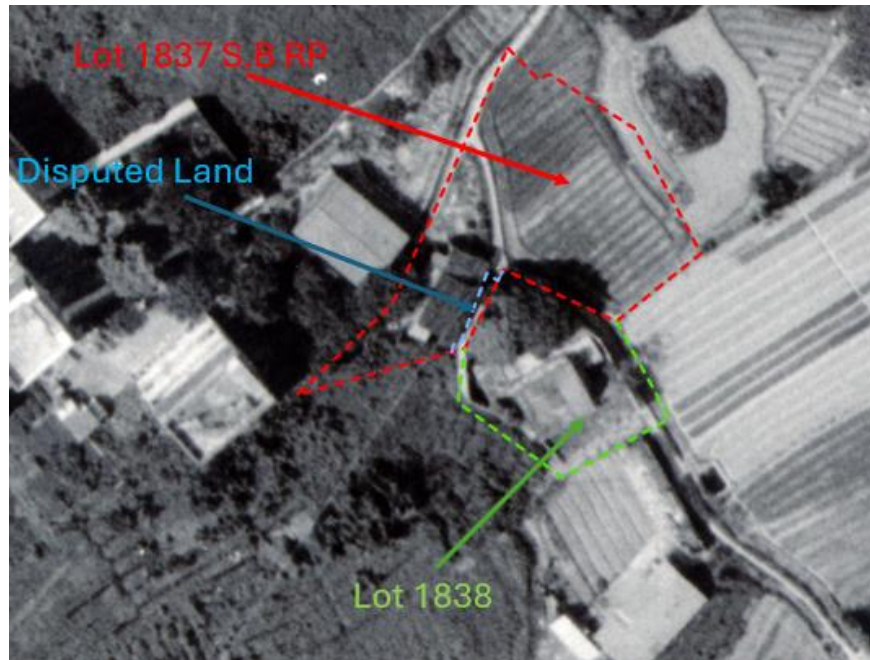
06 Oct 1989 Aerial Photograph (A18666)



5 Oct 1990 Aerial Photograph (A22985)



16 Jul 1991 Aerial Photograph (A26542)



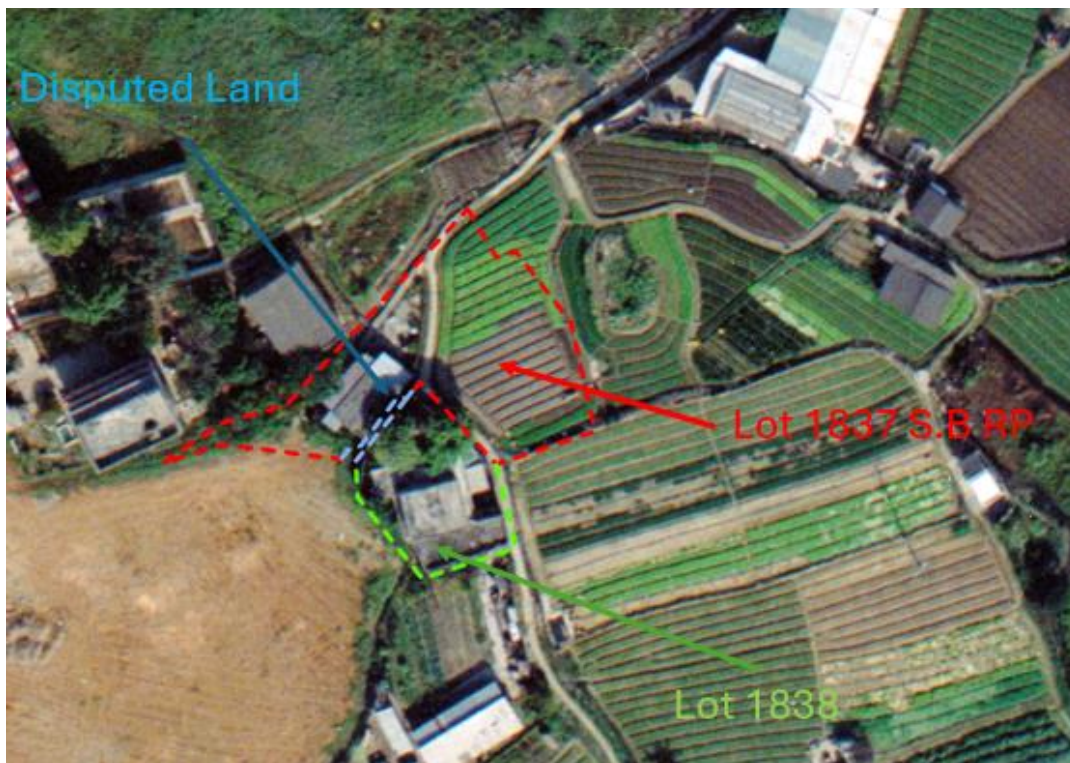
28 Apr 1992 Aerial Photograph (A30696)



2 Nov 1993 Aerial Photograph (CN5104)



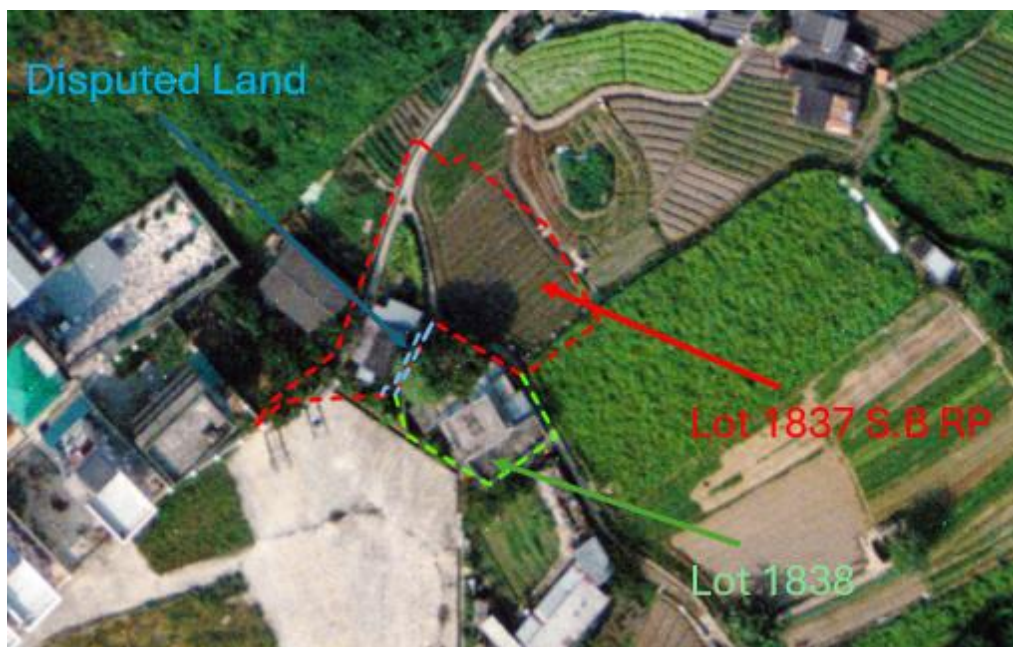
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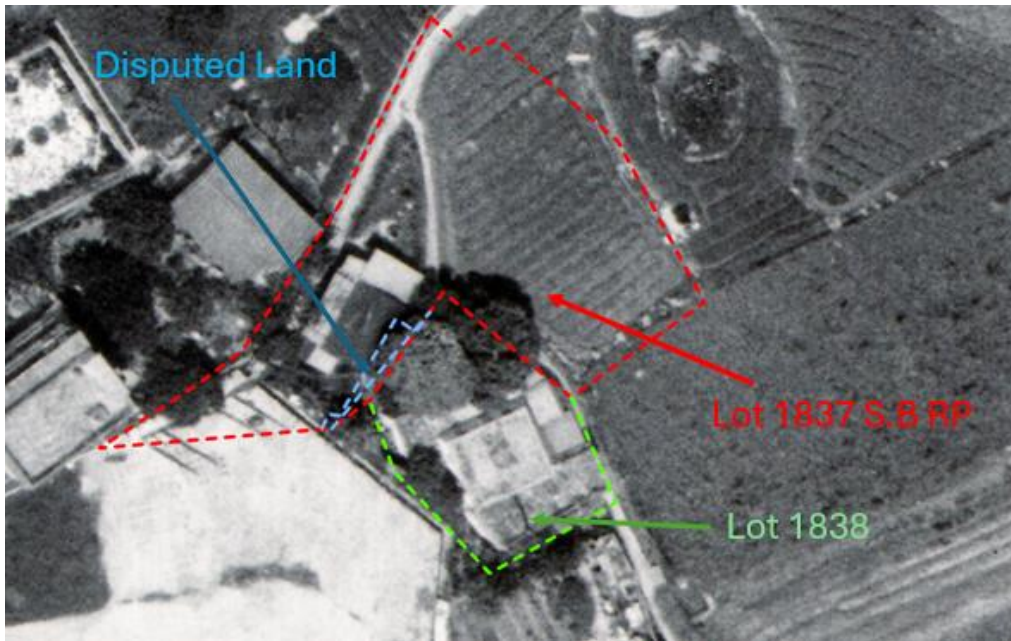
07 Feb 1995 Aerial Photography (CN9426)



06 Jun 1996 Aerial Photography (CN13904)



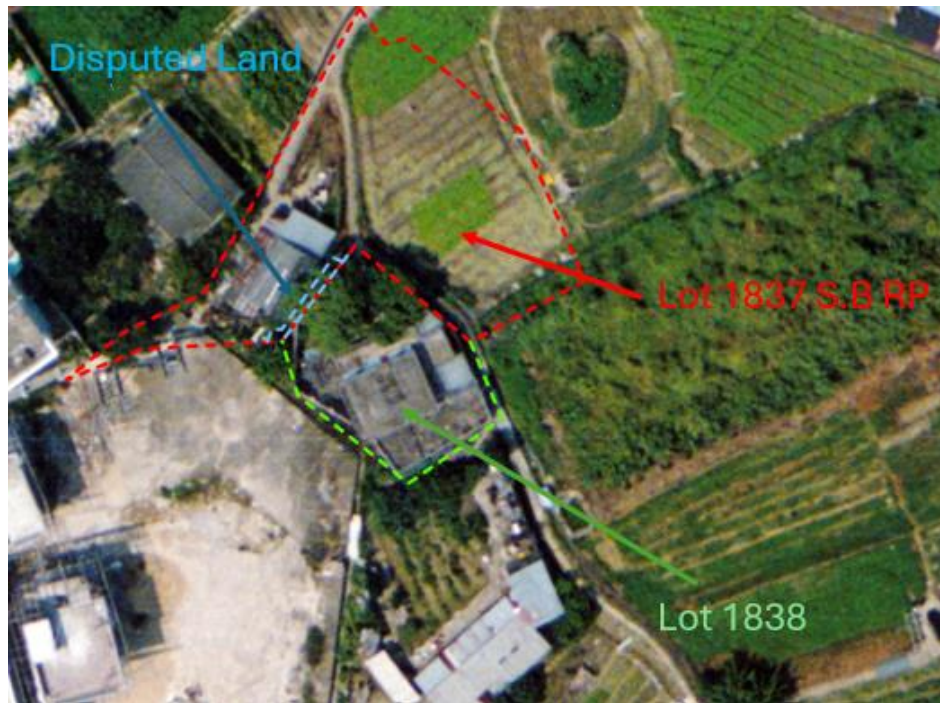
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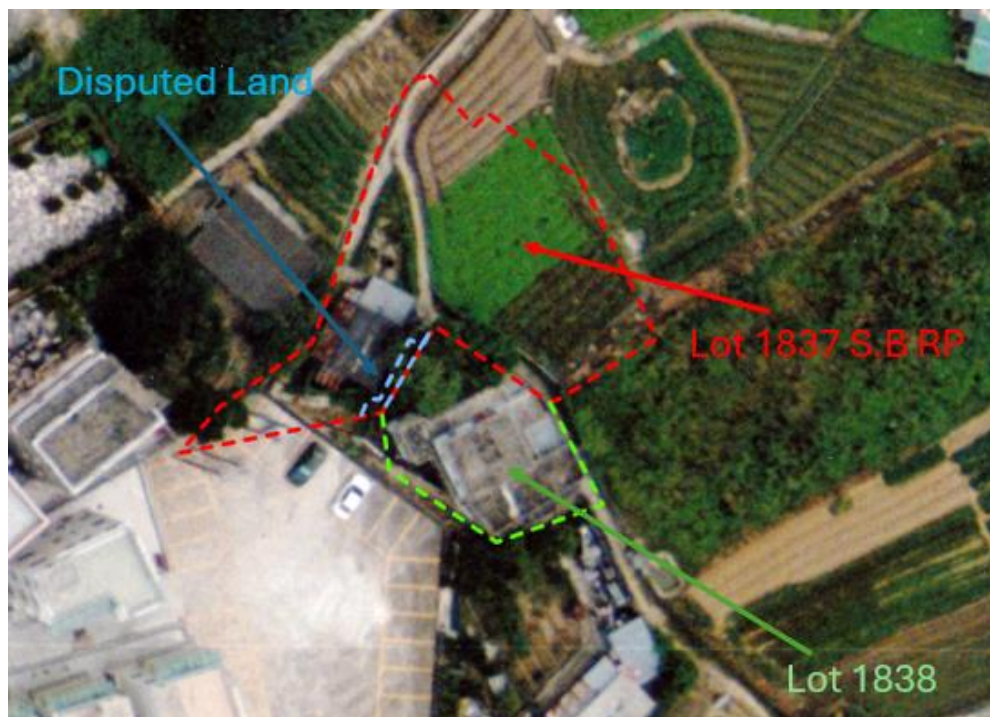
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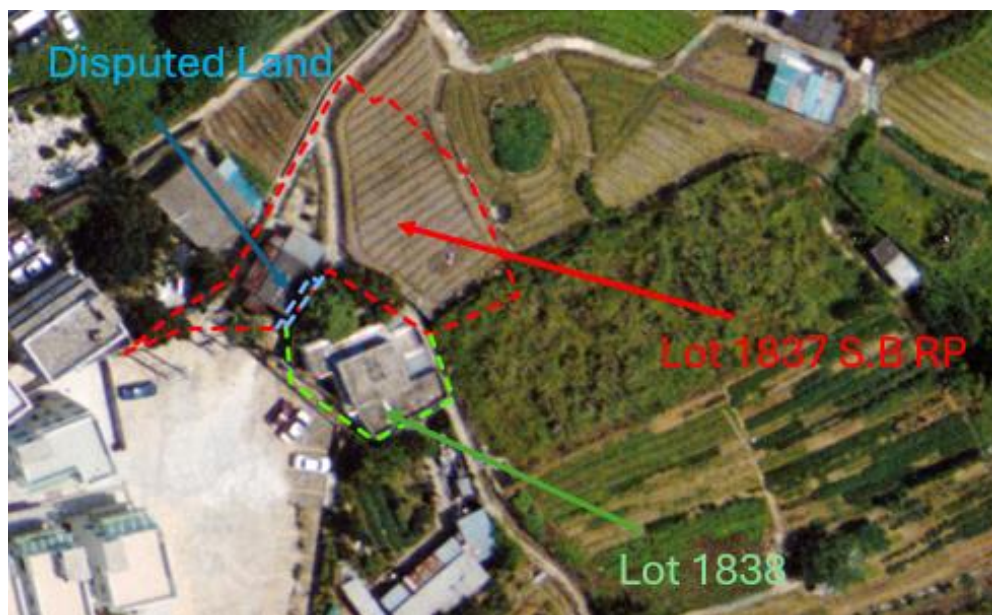
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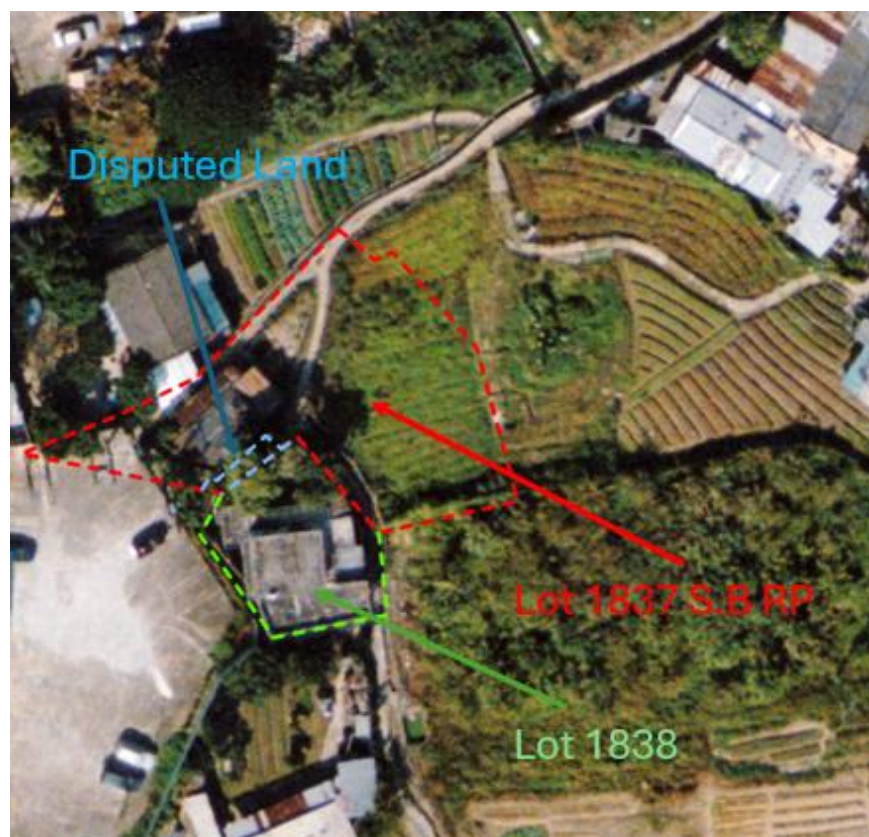
10 Aug 2000 Aerial Photography (CN28014)



20 Sept 2001 Aerial Photography (CS33272)



27 May 2002 Aerial Photography (CW41218)



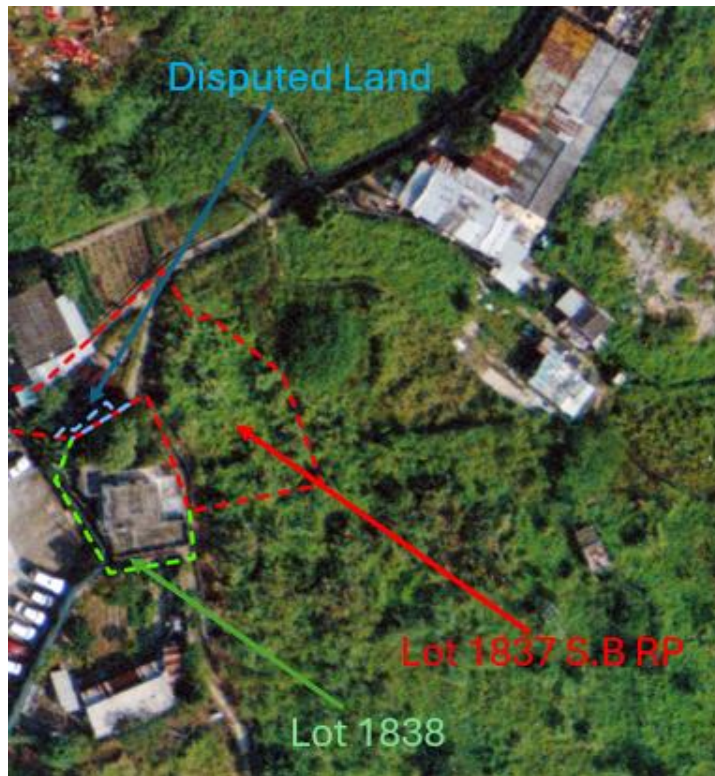
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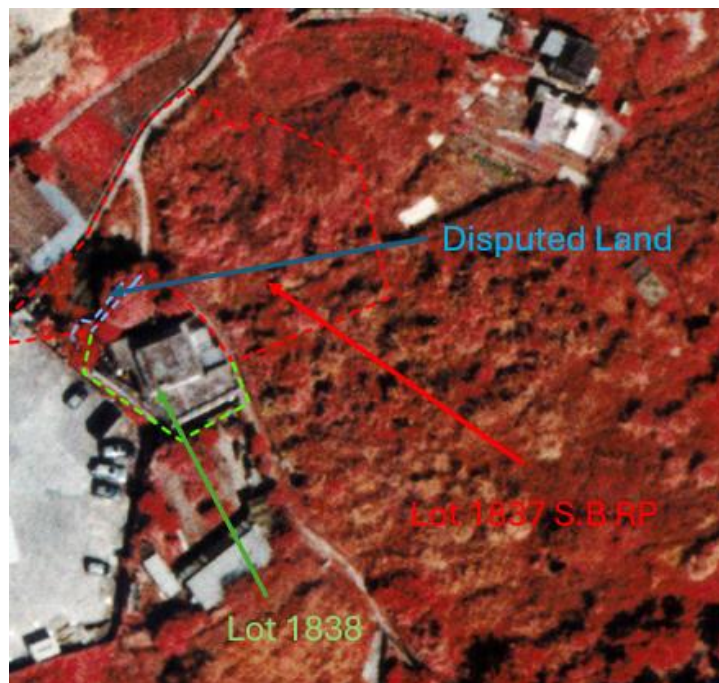
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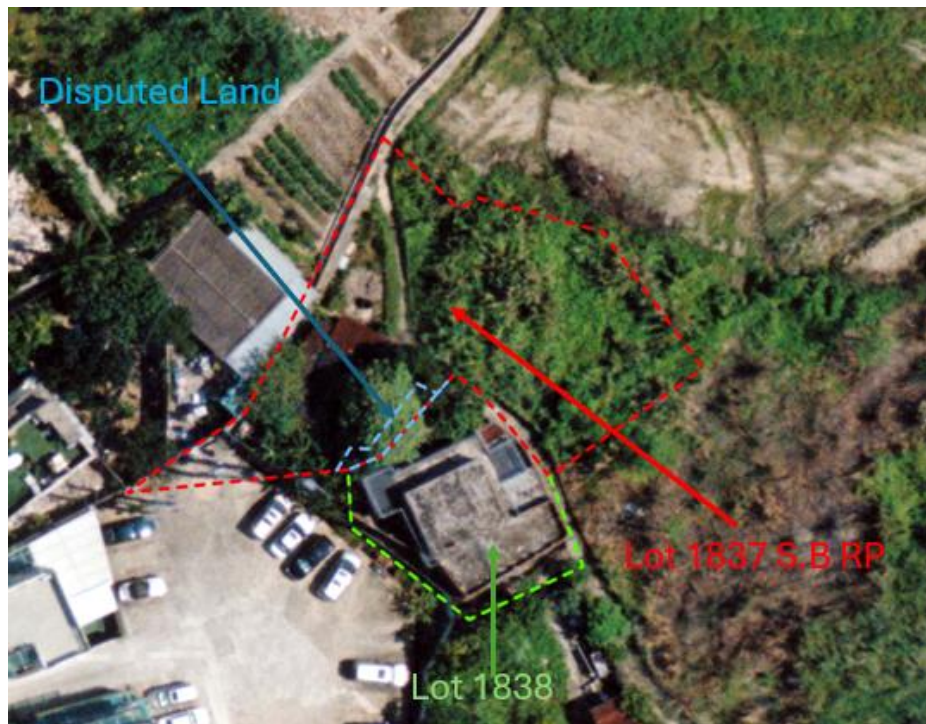
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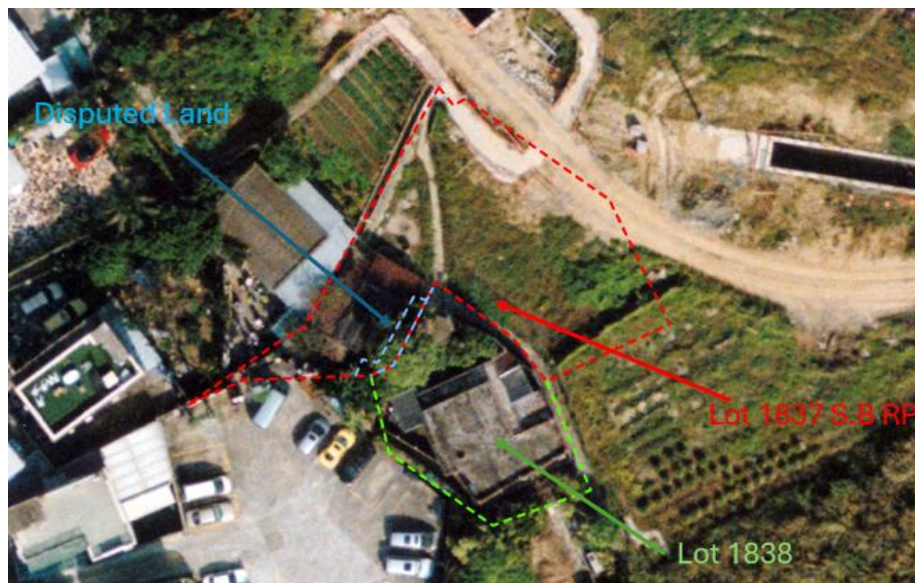
28 Sept 2006 Aerial Photography (CW73428)



02 Feb 2007 Aerial Photography (RW08413)



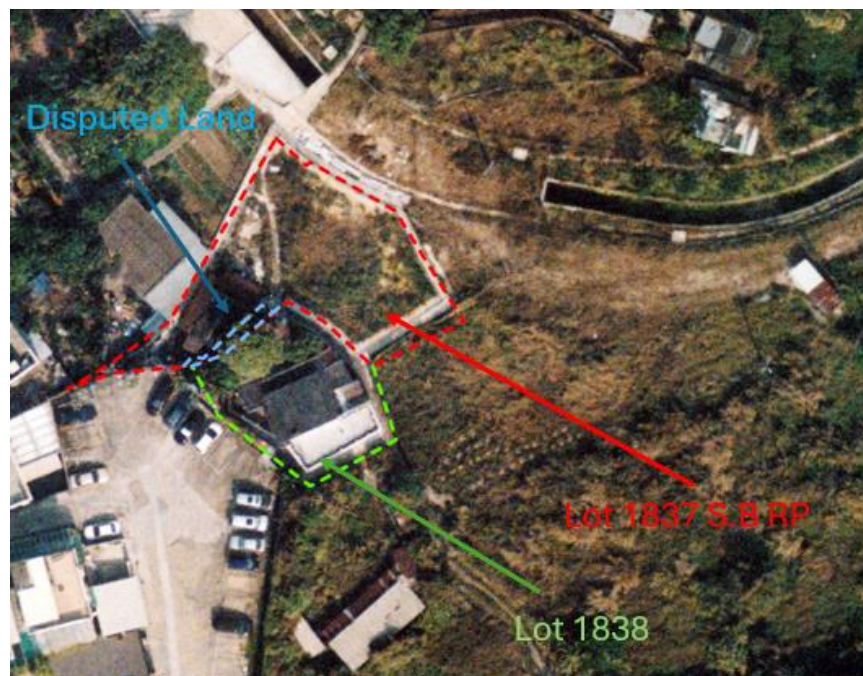
20 Aug 2008 Aerial Photography (CS16857)



24 Nov 2009 Aerial Photography (CS25533)



01 Nov 2010 Aerial Photography (RS04335)



10 Jan 2011 Aerial Photography (CS31370)



30 Jul 2012 Aerial Photography (CS36989)



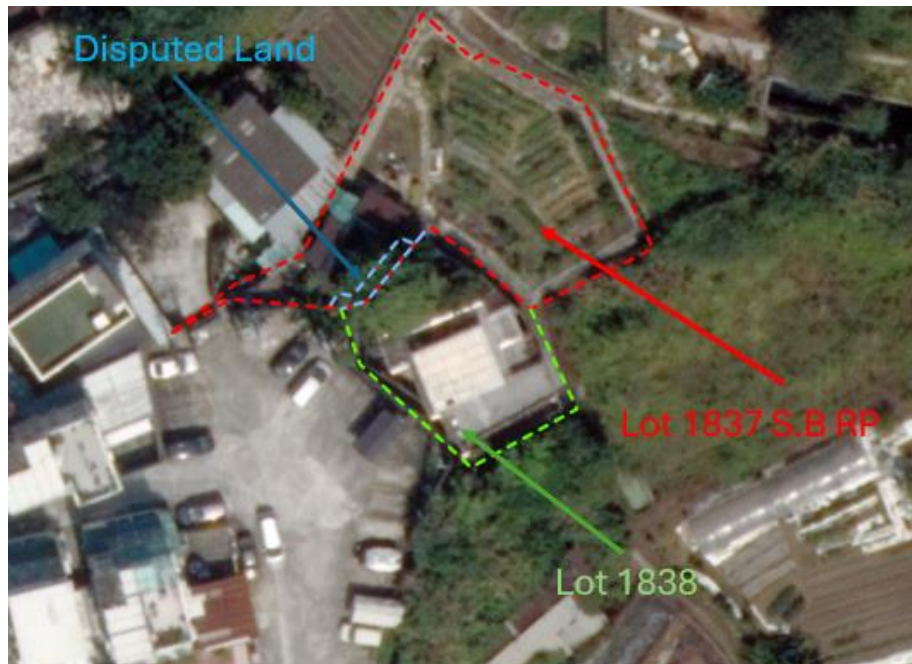
30 Jun 2013 Aerial Photography (CS43545)



23 Mar 2014 Aerial Photography (CS49441)



18 Feb 2015 Aerial Photography (CS62079)



06 Oct 2016 Aerial Photography (E002932C)



02 Apr 2017 Aerial Photography (E016590C)